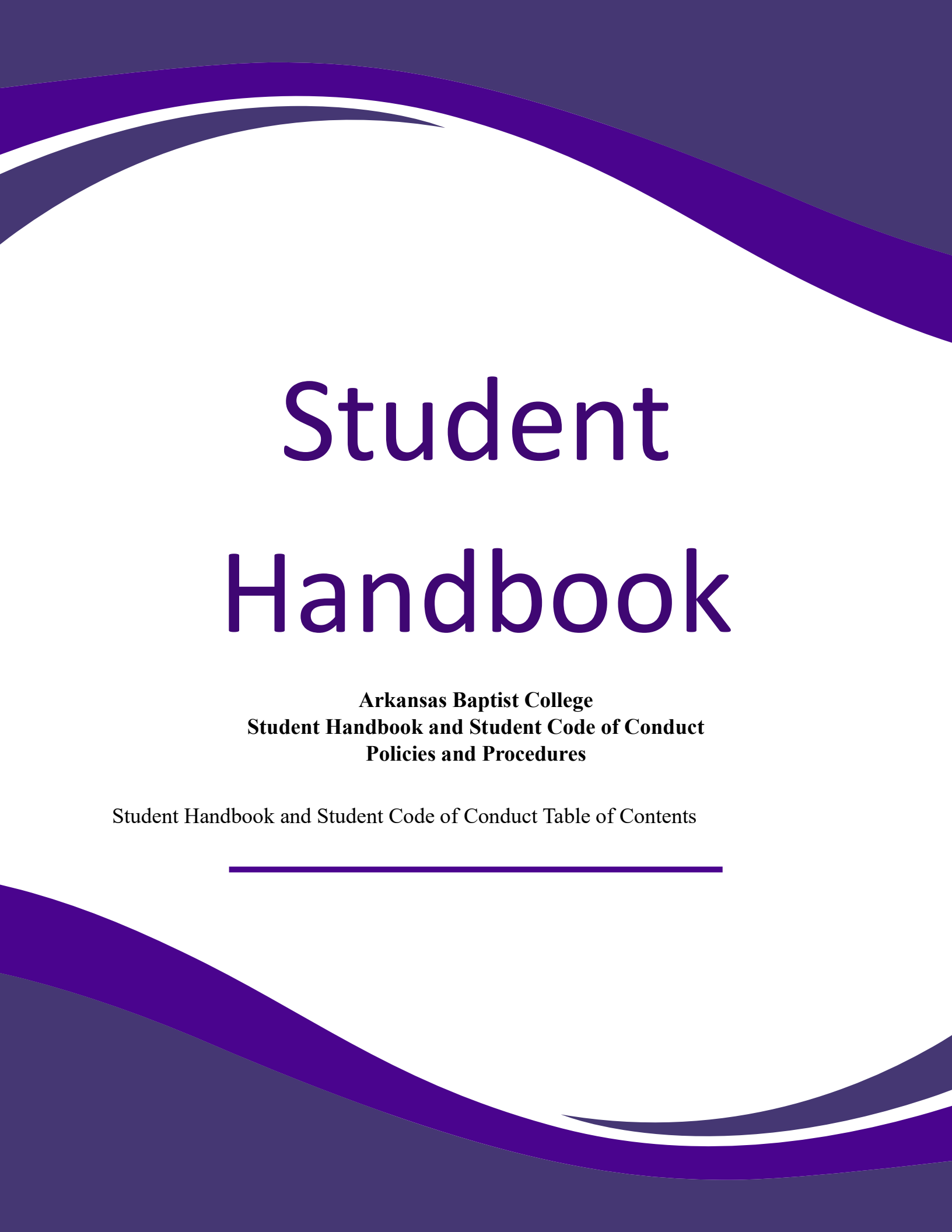




Student Handbook

**Arkansas Baptist College
Student Handbook and Student Code of Conduct
Policies and Procedures**

Student Handbook and Student Code of Conduct Table of Contents

<i>Handbook Statement</i>	<i>6</i>
<i>Emergency Contacts</i>	<i>6</i>
<i>About Arkansas Baptist College</i>	<i>7</i>
Mission Statement	7
Diversity Statement	7
Vision Statement	7
Core Values	7
History of Arkansas Baptist College	7
Arkansas Baptist College Seal	8
Arkansas Baptist College Colors	9
Old Main Auditorium	9
Arkansas Baptist College Alma Mater	9
<i>ABC Traditions</i>	<i>9</i>
Empowerment Hour – Thursday Chapel	9
Arkansas Baptist College Traditions	10
Student Leadership Traditions	10
Academic Traditions	10
<i>Community Standards</i>	<i>10</i>
<i>Purpose of the Community Standards and Code of Conduct.....</i>	<i>11</i>
<i>The Five Principles of Student Conduct</i>	<i>11</i>
<i>Campus Life</i>	<i>12</i>
Student Government Association	12
Arkansas Baptist College Royal Court	12
Miss Arkansas Baptist College	12
Mr. Arkansas Baptist College	12
Registered Student Organizations (RSOs)	13
Greek Letter Organizations	13
Active Sororities and Fraternity Chapters	14
Eligibility Criteria for Greek Membership	14
Greek Life Perspectives Workshop	15
Intake Process: Pre-Intake (Interest Meetings/Rush) Procedures	15
Expectations of Organizations Conducting Intake	16
Post-Intake (Interest Meeting/Rush) Procedures	16
Mutual Choice	
17 Anti-Hazing Policy	
17	
Anti-Hazing Statement of Standards	17
Definition of Hazing	17
Sexual Abuse & Harassment	18

Policy Enforcement	19
<i>Residential Life and Housing</i>	19
Housing Lease & Covid-19 Addendum to The Housing Lease	20
Removal From College Housing	20
Responsibility for Personal Property	20
Health & Safety Inspections	20
Room Changes & Roommates	20
Tuition & Room and Board Fees	21
<i>Dining Services – Bistro</i>	21
Bistro Hours of Operation	21
Dining Services Inclement Weather Policy	21
Allergens & Dietary Restrictions	21
<i>Student Affairs</i>	22
Office of Career Services	22
Office of the Dean of Students	22
Office for Disability Services	22
Office for Student Activities	23
Residential Life and Housing	23
<i>Academic Affairs</i>	24
Class Attendance Policy	24
Academic Appeals for Suspension	24
Extenuating Circumstances	25
Appeals Decision	25
Appeals Reinstatement	25
Academic Suspension Waiver	25
Academic Suspension Waiver Conditions	26
Academic Suspension from Institutions Other Than ABC	26
Student Academic Grievance Process	26
Informal Resolution (Step I)	26
Formal Grade Appeal Process (Step II after Informal Resolution Step I) Written Appeal to the Chairperson/Dean	27
Grade Appeal Committee (Step III)	27
Timelines	28
Other Student Grievances	28
<i>Academic Policies</i>	29
Academic Dishonesty	29

<i>Purpose of the Student Code of Conduct</i>	<i>30</i>
Jurisdiction	31
Student Conduct Administrators	31
Definition of Sanctions	31
Expulsion	31
Suspension	32
Status of Students Suspended for Disciplinary Reasons	32
Disciplinary Probation	32
Disciplinary Warning	32
Disciplinary Reprimand	32
Revocation of Admission and/or Degree	32
Other Sanctions	32
Judicial Holds	33
Reporting a Complaint	33
Notice of Complaint	33
Notice to Students	34
Notice of Disciplinary Conference or Hearing	34
Request for Postponement	35
Student Rights in the Conduct Process	35
Disciplinary Conference Procedures	36
<i>Student Conduct Hearing Board Committee and Procedures</i>	<i>36</i>
Committee	36
Procedures	36
Sanctions	37
Appeals	37
Mediation	38
Disciplinary Withdrawal.....	39
Official Withdrawal	39
Medical Mandatory Withdrawals	39
Interim Measures.....	40
Student Conduct Amnesty Policy	40
Interim No Contact Orders	41

Procedures for Readmission from Disciplinary Suspension	41
<i>Title IX</i>	41
Emergency Powers	41
<i>Types of Violations</i>	42
Level I Behavior Violations	42
Level I Behavior Violation Sanctions	42
Level II Behavior Violations	42
Level II Behavior Violation Sanctions	43
Level III Behavior Violations	44
Level III Behavior Violation Sanctions	44
Level IV Behavior Violations	45
Level IV Behavior Violation Sanctions	45
<i>Nondiscrimination Statement</i>	45
<i>Student Rights, Responsibilities, and Requirements</i>	46
Identification Cards	46
Mobile Devices, iPads, Headphones, and Tablet Use	46
Correct Current Address	46
Vehicle Registration and Parking	47
Withdrawal From the College	47
Campus Alcohol and Drug Policy	47
Drug Policy	47
Alcohol or Drug Possession Disclosure	47
Smoking Policy	48
Bystander Conduct	48
Possession of Firearms, Ammunition, Weapons, and Explosives	49
Fire Alarms, Emergencies and Fire Safety	49
Pets	50
Failure to Comply	50
Gambling/Waging/Bookmaking	50
Complicity	50
Aiding, Abetting, or Concealing Violators of the Student Code of Conduct	51
Breaching Campus Safety and Security, Providing False Information, Destroying or Damaging Property	51
Conduct Violation(s) Among Other Colleges and Universities	51
Computer Systems Appropriate/Acceptable Use	51
Policy on Disruptive Behavior in the Classroom	52
Misuse of College Telephone, Email, Communication Systems	52
Dress Code Violations	53
Appropriate Dress Attire	53
Inappropriate Dress Attire	53

Consequences for Violating the General Dress Attire Guidelines	54
Demonstrations and Mass Gatherings	54
Freedom of Expression Policy and Campus Protest	54
Posting and Publicity	55
Littering.....	55
Sales and Solicitation	55
Bullying, Intimidation, and Harassment (BIH)	55
Burglary	56
Campus Disturbance	56
Defacing College Property	56
Disorderly Conduct	56
Failure to Answer a Summons	56
Fraud	56
Forgery	56
Host Responsibility	56
Interference with Emergency Evacuation Procedures	56
Insubordination	56
Possession of Stolen Property	57
Mental or Bodily Harm	57
Misuse of ABC I.D. Card	57
Misuse of Safety Equipment	57
Photographing or Videotaping	57
Stalking	57
Unauthorized Entry/Trespassing	57
Unauthorized Use of the College's Name	57
Undisclosed recording	57
Violation of College Policies and Procedures	58
Harassment	58
Racial Harassment Statement	59
Sexual Harassment Statement	59
Harassment Based on Other Protected Categories	59
Sexual Assault Policy	59
Sexual Misconduct Policy	60
Sexual Misconduct of any Kind is Prohibited and Unacceptable	60
Reporting Sexual Misconduct	61

Sexual Misconduct Disciplinary Hearing Process	61
Arkansas Baptist College State Authorization Reciprocity Agreements (SARA) Student Complaint Process .	62
Arkansas Department of Higher Education (ADHE)	62
<i>Additional College Policies</i>	63
Travel Policy	63
Copyright Infringement Policy	63
Fair Use Policy	63
Institutional Policy On HIV/AIDS	64
Institutional Policy on Safety	64

Handbook Statement

The Division for Student Affairs and Academic Affairs is pleased to provide you with the Student Handbook and Student Code of Conduct. You will find important information about our standards of excellence, campus policies, the Student Code of Conduct, your rights and responsibilities as an Arkansas Baptist College student, and other important information to support your success on our campus. We ask you to take time to review the contents of this document and pay particular attention to the College policies and procedures as we expect students to be responsible for their own behaviors, in addition to holding their peers accountable for being good citizens. More importantly, it is our hope that the information found in this document will serve as a resource guide to assist you with your transition and adjustment to the Arkansas Baptist College community.

Need More Information?

Please contact the following for more information:

Division for Student Affairs

Arkansas Baptist College

1600 Dr. Martin Luther King Jr. Drive. Little

Rock, Arkansas, 72202

Dean of Students

(501) 420-1243

Vice President for Student Affairs

(501) 420-1287

Vice President for Academic Affairs

(501) 420-1312

The statements in this document are for informational purposes only and do not constitute a contract between Arkansas Baptist College and any student. Arkansas Baptist College reserves the right to change, add to, or discontinue any provision in this document at any time without prior notice to students. For a complete listing of all campus policies, please visit www.arkansasbaptist.edu. Further information about Arkansas Baptist's academic programs and the cost of tuition, room, board and other fees can be found on the Arkansas Baptist College website.

Equal Opportunity Policy

Arkansas Baptist College admits students without regard to race, color, religion, creed, national origin, age, disability, sexual orientation, marital status, protected veterans status, genetic tests, genetic information or any other legally protected status.

Emergency Contacts

All emergencies and critical incidents should be directed to Campus Safety at (501) 786-7356. Other helpful resources include the following:

Campus Security

(501) 786-7356

UAMS Hospital

(501) 686-7000

About Arkansas Baptist College

Mission Statement

Arkansas Baptist College prepares students for a life of service grounded in academic scholarship, the liberal arts tradition, social responsibility, Christian development and preparation for employment in a global community.

Diversity Statement

Arkansas Baptist College (ABC) seeks to resemble the heart of God by embracing inclusion of all ages, cultures, nationalities, races, abilities, socio-economic backgrounds, gender, political perspectives, learning styles, sexual orientation, religion, and ethnicity. ABC strives to promote a student body, faculty, and staff, which reflect the community it serves. ABC promotes the development of broadminded members of the college who positively influence their local and global communities. ABC upholds fairness and guarantees the same rights and freedoms to all its members to ensure the fullest degree of intellectual freedom and diversity.

Vision Statement

To see our community, state, and nation positively influenced through the integration of academic scholarship and Christian principles.

Core Values

The following principles of Institutional Core Values are embodied in the Mission of Arkansas Baptist College. The Core Beliefs and Values are an interpretation of the role and scope of the college to:

- provide each student with a common core of knowledge that promotes intellectual curiosity and serves as a foundation for professional development, life-long learning, and exposure to diversity and cultural pluralism.
- prepare students for professional work and upward mobility in their chosen fields.
- prepare students through programs of counseling, skills development and services.
- conduct scholarly activities that will aid the College, community, state and ultimately the nation in the solution of problems and improve the quality of the academic programs offered.
- encourage students to think critically and creatively, write clearly, speak effectively, and understand and apply abstract concepts.

History of Arkansas Baptist College

In August 1884 at the Annual Convention, the Colored Baptists of the State of Arkansas, now the Arkansas Baptist State Convention, founded the “Minister’s Institute.” Three months later in November of 1884, the school opened at the Mount Zion Church in Little Rock, AR. The school was renamed “Arkansas Baptist College” in April 1885.

According to its historical mission, Arkansas Baptist College was founded with the primary goal of raising the educational level of the Negro ministry, with the secondary goal being to assist the state of Arkansas in preparing young Negro men and women with a “normal” education. These goals have since been expanded to providing educational opportunities to all persons seeking an education without regard to age, sex, race, religion, or national origin.

The Executive Board of the Convention hired Rev. J. P. Lawson, a white Baptist minister from Joplin, Missouri to serve as the principal teacher. A block of land was purchased for \$5,000 from Attorney Blake Turner at 16th and High Street within the city limits of Little Rock. It was at this site that several buildings were erected, and the Arkansas Baptist College campus was created.

Arkansas Baptist College has had the following presidents:

The Presidents of Arkansas Baptist College	
President’s Name	Years of Service
Reverend J.P. Lawson (Principal)	1884 – 1887
Dr. Joseph A Booker	1887 – 1926
Reverend S.P. Nelson	1926 – 1937
Reverend R.C. Woods	1926 – 1937
Reverend S.R. Tillinghast	1926 – 1937
Dr. Tandy W. Coggs	1955 – 1962
Dr. Oscar Allan Rogers	1955 – 1962
Dr. Charles E. Johnson	1955 – 1962
Mr. Howard Johnson	1955 – 1962
Dr. P.L. Rowe	1955 – 1962
Dr. James C. Oliver	1962 – 1982
Dr. R.C. Davis*	1982 – 1985
Dr. W. Thomas Keaton	1985 – 2001
Mrs. Mary R. Jarrett*	2001 – 2001
Dr. Israel Dunn, Jr.	2001 – 2005
Mrs. Mary R. Jarrett*	2005 – 2006
Dr. O. Fitzgerald Hill	2006 – 2016
Dr. Joseph Jones	2016 – 2017
Dr. Howard O. Gibson*	2017 – 2018
Mrs. Regina H. Favors	2018 – 2020
Dr. Carlos R. Clark	2020 – 2021
Mrs. Regina H. Favors*	2021 – 2022
Dr. Calvin J. McFadden	Current President
<i>Asterisk (*) notates interim Presidents</i>	

Arkansas Baptist College Seal

The College Seal depicts the institution's founding date of 1884; the official name of the institution, —Arkansas Baptist College; its present location, —Little Rock, Arkansas; and the words —Truth and Light, which signify that —if one has knowledge of the truth, then one is enlightened. The hand-held beacon illuminates the spiritual truth where all may observe it. Arkansas Baptist College is a beacon light, illuminating the truth (knowledge) for all to learn of it. The hand signifies the spiritual strength of the church and alumni.

Arkansas Baptist College Colors

- Purple and White
- Purple: Imperial (high standing) position
- White: Purity

Old Main Auditorium

The restoration of Old Main on the campus of Arkansas Baptist College (ABC) was done in two phases and completed in the winter of 2010. The building is on the National Register of Historic Places and is the oldest building on a historically African American college campus in Arkansas. It was completed around 1895. Old Main is once again the crown jewel in the center of the campus of Arkansas Baptist College. It also serves as a physical reminder of the rejuvenation of one of the most historically significant institutions of higher education in Arkansas.

Arkansas Baptist College Alma Mater

Our Beacon Light

Stalwart, brave, and true is our Alma Mater Dear,
With outstretched arms to draw our children near;
Pointing out to them, The Way, The Truth, The Light, Guide
them ever onward to the Upward Heights.

Refrain:

A .B. C., A. B. C., calling Thee so reverently,
Our eyes are filled, our hearts are thrilled,
Moved by love so deep for Thee;
Beacon light, pride and joy,
For the dear State, Arkansas,
Loyalty eternally, Alma Mater Dear, to Thee.
Purple and White, Majestic in the Breeze,
Regally waves on sky, on land, o'er seas, Proclaims
to all, her grandeur and her worth,
Enlightening men, The Way, e'er since her birth.

ABC Traditions

Empowerment Hour – Thursday Chapel

Arkansas Baptist College is a Christian Institution interested in the religious life of its students and encourages them to attend regularly the churches of their choice. Churches of all the denominations are located in Little Rock. Arkansas Baptist College provides regularly scheduled Chapel assemblies during the academic school year with the exception of summer terms. All students are required to attend Chapel each Thursday which is mandatory.

Students who do not adhere to this requirement will be sanctioned. Dress attire for Chapel consists of the following: slacks, collar shirt, ties, and dress shoes for male students and dresses, skirts, slacks, blouses with buttons or crew neck tops, and dress shoes for female students. No jeans, t-shirts, shorts, sweat suits, sweatpants, hoodies, or sneakers regardless of brand name, are permitted as acceptable attire for Chapel. Students who attend wearing inappropriate clothing will be required to change their clothes to the appropriate clothing provided by the Office of Student Affairs. Chapel is scheduled at 11:00 a.m. every Thursday in the gymnasium or the Old Main Auditorium during each semester (fall and spring).

Arkansas Baptist College Traditions

- Constitution Day
- Convocation
- E.C. Morris Institute
- Empowerment Hour – Thursday Chapel
- Founders Day
- Homecoming
- New Student Orientation
- New Student Induction Rites of Passage Ceremony
- Religious Emphasis Week
- Welcome Week

Student Leadership Traditions

- Student Government Association Elections
- Mr. and Miss ABC Elections
- Mr. and Miss ABC Coronation

Academic Traditions

- Baccalaureate Services
- Commencement Services
- Honors Convocation

Community Standards

Philosophy on Student Responsibility Arkansas Baptist College is dedicated to providing an atmosphere of integrity where students can learn and experience personal growth. Admission to the College carries a

presumption that students will conduct themselves as responsible members of the community. The Student Code of Conduct provides guidelines for student behavior. The premise of our student conduct administration process is that we expect students to take responsibility for their behavior, in addition to holding their peers accountable for being good citizens. The student conduct administration process allows the college to address behavior that has a negative impact on individuals and/or the campus community. The Community Standards and Code of Conduct are designed to clearly communicate behaviors that negatively impact our community.

As a member of Arkansas Baptist College, you have voluntarily entered into a community of learners who are expected to exhibit thoughtful academic study and discourse, and ethical and socially responsible behavior on and off-campus. The College has developed the Five Principles of Student Conduct and other policies and procedures to support its academic mission, objectives, processes, functions, and general operations. These Principles represent the core values of respect for oneself, respect for others, respect for property, respect for authority, and honesty.

Purpose of the Community Standards and Code of Conduct

Arkansas Baptist College is committed to the development and personal growth of students. Students are encouraged to be reflective of the college values and behavioral expectations as they engage in their academic studies and co-curricular activities. Research has demonstrated that students who are active participants in the college and surrounding communities are more likely to uphold college policies and maintain a positive community environment. Conduct occurs in the context of a community of scholars dedicated to seeking excellence in academics, personal learning and leadership.

Arkansas Baptist College is dedicated to pursuing truth, discovering and transmitting knowledge, promoting a life of faith, and developing leadership expressed in service to others. To achieve these ideals, students are expected to contribute to community development through action. The College encourages the pursuit of knowledge by representation and exploration of diverse ideas in a manner consistent with the mission. When a student enrolls at Arkansas Baptist College, he/she accepts the responsibility to uphold the mission statement and core values. Five Principles of Student Conduct have been established to facilitate mutual respect and consideration among students and the campus community. The basic premise of these principles is to ensure that students can exercise their rights as individuals, while upholding the integrity of the College.

The Five Principles of Student Conduct

The student conduct administration process, including the right to appeal, is established to support the rights and responsibilities of each student, to sustain the college's values and behavioral expectations, in addition to determining future privileges as a member of the Arkansas Baptist College community. This is accomplished by holding individual students and student organizations responsible and accountable to the College's stated values and behavioral expectations. The following are the values of the student conduct administration process:

1. Respect for Oneself

The College values students and is concerned about student development. Students are expected to pursue academic success to enhance their quality of life. To achieve this, the student must hold himself/herself in high regard. The College does not tolerate students engaged in self-destructive behaviors that impede the education matriculation. College and community resources are available for students who need consultation.

2. Respect for Others

Arkansas Baptist College expects students to treat members of the campus community with respect. Respect for others shows consideration for religious beliefs, cultural differences, and socioeconomic status. Students should avoid behavior that may be deemed offensive to others.

3. Respect for Property

The College provides reasonable accommodations and resources for students. Students should not deface, damage, or mutilate any property of the institution, thus having respect for property. Respect for property is essential to the College fostering a clean, well-maintained environment. In addition, students should respect the property of others as well as their own.

4. Respect for Authority

Arkansas Baptist College personnel are responsible for peaceful and orderly College daily operations. These individuals preserve the College's well-being and foster the mission through daily duties and responsibilities of their respective units. Authority is delegated to the faculty, staff, and administrators to maintain peace and order in all facets of the College. These individuals deserve to be treated with respect at all times and in all places within the College community.

5. Honesty

Students at Arkansas Baptist College are expected to exude integrity at all times. This includes activities both inside and outside of the classroom when interacting with peers, faculty, staff, and administration. Conduct that is dishonest in nature, whether in dialogue or in action, that is injurious to the College will result in disciplinary action.

Campus Life

Arkansas Baptist College provides a vibrant campus environment that engages students in their growth and development using a holistic approach: culturally, intellectually, spiritually, recreationally, socially, interpersonally, emotionally, and nutritionally. Students are encouraged to get involved in their collegiate experience by joining a club or organization, participating in the discussions in class, and becoming active as leaders. Empirical research suggests that the more students are engaged in college, the more likely they will persist and graduate. The following list outlines programs and activities where students can actively engage in their growth and development for success during and beyond college.

Student Government Association

The Student Government Association (SGA) is the representative voice for all Arkansas Baptist College students. SGA formulates policies and works closely with administration on issues that directly affect students. Elections for various offices are held annually. Students are encouraged to get involved in leadership positions and sponsored activities. SGA officers include President, Vice President, Secretary, Treasurer, Historian, Chaplain, Chief of Staff, Senior Class President, Junior Class President, Sophomore Class President, and Freshman Class President. A student must have a cumulative GPA of at least 2.50 to run for office and once elected must maintain a 2.50 cumulative GPA.

Arkansas Baptist College Royal Court

The Arkansas Baptist College royal court is a group of male and female students that represent each class (freshman, sophomore, junior) as well as Mister and Miss Arkansas Baptist College, which has been synonymous with class, grace, intellect, and leadership.

Miss Arkansas Baptist College

As the highest female student leadership position, Miss Arkansas Baptist serves as an ambassador for the college by promoting campus leadership, community service, and school pride. Miss Arkansas Baptist is epitome of the Arkansas Baptist Woman.

Mr. Arkansas Baptist College

The title of Mr. Arkansas Baptist has been synonymous with success, leadership, and excellence. As the highest student leadership position for men, Mr. Arkansas Baptist serves as an ambassador for the college promoting campus leadership, community services, and school pride. Mr. Arkansas Baptist is the epitome of the Arkansas Baptist Man.

Registered Student Organizations (RSOs)

All ABC student clubs/organizations are required to officially register with the Office of Student Activities to receive the full benefit of campus and community resources. For more information, please contact the Office of Student Activities at (501) 420-1243 or visit the Office of Student Activities in the Student Services Center.

Student Organization Expectations

- A. Maintain a current charter document including the constitution, bylaws, and membership rosters.
- B. Have an active on-campus advisor (full-time faculty or staff member who is not also enrolled as a student at ABC).
- C. Provide updated advisor and student contacts with the Office of Student Activities.
- D. Participate in the Annual Registered Student Organization Fair (fall and spring).
- E. Ensure that members and guests comply with all local, state, and federal laws.
- F. Ensure sufficient financial resources to meet all financial obligations for programs and events.
- G. Assume responsibility for any damage or theft in campus facilities immediately before, during, and after an event or program.
- H. Practice risk management by developing appropriate precautions to ensure the health, safety and welfare of participants.
- I. Consult with the Office of Student Activities and Campus Safety in advance to develop a plan that minimizes the risk of incidents.
- J. Provide appropriate security at on-and off-campus parties, dances, and other major social events. One officer is required for every 75 guests. Security officers must be present from the beginning of the activity until all participants have left the premises. In events where non-ABC students, faculty, or staff are present, the organization may be required to have additional officers from NLPD on campus. The sponsoring organization may be required to assume all associated costs.
- K. Attend all mandatory RSO training and meetings.

Registered Student Organizations Benefits

- Leadership training and development
- Opportunity to sponsor on-campus events and programs

- Access to funding from the Student Government Association (SGA)
- Use of the campus facilities

For more information on how to become a Registered Student Organization, please visit the Office of Student Activities. The above information does not fully explain in detail all the requirements of RSOs. Please refer to the student organizations handbook for further information.

Greek Letter Organizations

The College recognizes that fraternities and sororities are an integral part of campus life. The College also reserves the right to allow these organizations to colonize the campus. There are two national sororities and three national fraternities with chapters on the Arkansas Baptist College campus. These organizations are nationally affiliated and report on campus to the Director of Student Activities or his/her designee. Each sorority and fraternity must act in accordance with the organization's constitution and by-laws, national guidelines, membership requirements, and recruitment regulations that must meet with the approval of the Dean of Students and/or his/her designee.

At the beginning of each semester, each sorority and fraternity is required to submit a roster of active members to the Director of Student Activities. All chapter members must maintain a minimum 2.5 GPA and attend an Anti-Hazing Workshop each semester. Each organization is required to complete three (3) campus service projects per semester.

In addition, national organizations must allow chapter members to sign an agreement to follow college regulations of sororities and fraternities, which include having an on-campus advisor who is either a fulltime faculty or staff member and may not be currently enrolled in an undergraduate program at ABC. When possible, the on-campus advisor should be a certified trained member of the sorority or fraternity and should additionally serve in the capacity of primary advisor.

ABC welcomes the establishment of Greek Letter Organizations on campus. To obtain a charter, the organization must submit a Form of Intent to the Office of Student Activities. Once a letter of approval and support is received from the Director of Student of Activities, written notice of approval is sent to the representative chapter member. All Greek Letter organizations must adhere to this process and all College policies. Failure to do so could result in the organization being banned indefinitely from campus. For more information on Greek-life policies, please refer to the Greek Life handbook.

Active Sororities and Fraternity Chapters

- Tau Pi Chapter of Delta Sigma Theta Sorority, Inc.
- Pi Lambda Chapter of Kappa Alpha Psi Fraternity, Inc.
- Alpha Delta Chapter of Omega Psi Phi Fraternity, Inc.
- Rho Phi Chapter of Phi Beta Sigma Fraternity, Inc.
- Psi Rho Chapter of Zeta Phi Beta Sorority, Inc.

Eligibility Criteria for Greek Membership

Students must meet the following eligibility criteria to participate in sorority membership intake processes:

- Be a full-time enrolled student of sophomore status with 27 or more credit hours.

- Transfer students must complete 15 or more credit hours at Arkansas Baptist College prior to a membership intake process.
- Have a minimum 2.5 cumulative grade point average at the time of membership selection. This will be verified with the Registrar's Office.
- Perspective students must complete at least 30 community service hours verified by the Office of Student Activities. Please note, chapters may require additional hours as part of their application process.
- Be in good judicial standing.
- Be in good financial standing with Arkansas Baptist College as determined by the Office of Student Accounts. Students must have a zero balance or be current in their semester payment plan. Please refer to the Student Account for the payment dates. Financial clearances will be verified with Student Accounts. If a student is in expectation of a scholarship, it must be posted to the student's account by the date that the sorority or fraternity submits their list of prospective members for clearance.
- Record of participation in the fall or spring Greek Life Perspectives Workshop must be attended within the academic semester that one wishes to go through the membership intake process.
- Completed the organization's application processes.
- * Persons who cannot attend due to reasonable excuses have an opportunity to attend a makeup session but must notify the Office of Student Activities.

Greek Life Perspectives Workshop

Any student interested in Greek Life at Arkansas Baptist College is required to attend a Greek Life Perspective Workshop. The Greek Life Perspectives Workshop is an information session designed to provide students with an overview of each sorority and fraternity, history and traditions of Black sororities and fraternities, college policies and procedures, policies pertaining to membership intake policies, and risk management policies. The Greek Life Perspectives Workshop occurs in the Fall and Spring semester. All interested students must attend the Greek Life Perspectives Workshop. If a student is unable to attend, the student must submit email documentation of the reason for your absence to the Director of Student Activities prior to the Greek Life Perspectives Workshop. Excused absences are granted at the discretion of the Office of Student Activities.

Absences are typically granted for health-related issues, death of an immediate family member, academic conflicts. Excuses are not accepted for job conflicts, failure to receive notice of the Greek Life Perspectives Workshop or other personal conflicts in schedule. Students who are unable to attend the advertised Greek Life Perspectives Workshop date must submit an excuse by the eve of the Greek Life Perspectives Workshop during business hours.

Excuses include death in the family, severe illness, hospitalization, significant and/or ceremonial events such as funerals, and those once in a lifetime event that can be verified.

Students who submit an excuse prior to the Greek Life Perspectives Workshop and are excused will be notified via their ABC email of the date, time and location of the make-up session. If the make-up date conflicts with the student's schedule, the Director of Student Activities should be notified within two (2) days of receipt of the email notification so that other arrangements can be made. Students who miss the scheduled make-up session without notifying the Office of Student Activities will not be excused.

Intake Process: Pre-Intake (Interest Meetings/Rush) Procedures

The membership intake period for the Fall 2023 semester will begin no earlier than **Monday, September 10, 2023, and end no later than Friday, October 20, 2023, at 5:00 p.m.** The membership intake period for the Spring 2024 semester will begin **Monday, February 12, 2024, and end no later than Friday, March 29, 2024, at 5:00 p.m.**

Please note: No organization may conduct any membership intake-related activities during Monday, March 18, 2024 – Saturday, March 23, 2024 (Spring Break). All membership intake-related activities must take place on the Arkansas Baptist College campus.

**Greek organizations interested in membership intake may only be approved to intake members once in an academic year. Example: if an organization chooses to have membership intake in the fall, the organization may not have membership intake in the spring or vice versa.*

During the membership intake process, activities can begin at the following designated times: Monday through Thursday, 5:00 PM – 10:00 PM; Friday, 5:00 PM – 12:00 AM (midnight); Saturday, 8:00 AM – 12:00 AM (midnight); and Sunday, 8:00 AM – 10:00 PM.

Any organization conducting membership intake activities must receive official authorization in writing from the Office of Student Activities before membership intake activities commence. Please note, all students and organizations must follow College regulations. Failure to follow College regulations could result in violations that could potentially impact the student and the organization.

Expectations of Organizations Conducting Intake:

1. The academic mission of the institution will be upheld and promoted to new members.
2. The membership activities will not interfere with academic endeavors or class schedules.
3. The selection of new members will be free of any form of mental and/or physical abuse and hazing.
4. Chapters will not engage in pre or post hazing activities.
5. The Official chapter advisors will be present at all membership-related activities.
6. Chapters must complete all required paperwork in a timely fashion.
7. No membership activity can include the presence or consumption of alcohol or drugs.
8. Chapters must adhere to all recommended safety guidelines to mitigate the spread of COVID-19.

New Member Intake, closures, and new members showcase/probates are to occur no more than seven (7) calendar days after the completion of the membership intake process. No new members showcases/probates are allowed to take place during holidays or breaks in which the campus is closed, important event or program dates intended for the entire campus community or (2) weeks prior to the end of the semester to ensure uninterrupted time for academic preparation for final projects, tests and exams. Please refer to the ABC Academic Calendar to ensure that events are not scheduled during blackout dates for the college.

Post-Intake (Interest Meeting/Rush) Procedures

1. After applications are received by the organization, the chapter must submit its list of qualified students. Within 72 hours of the Membership Intake (Rush) process, the organization must submit the number of applications received to the Office of Student Activities. The list submitted must clearly outline legacy and non-legacy applicants.
2. Once the Office of Student Activities receives the list of potential candidates for membership into your sorority or fraternity, please be advised that we will not accept any amendments, to include grade changes, judicial modifications, or the like for any reason.
3. The Office of Student Activities will submit verifications for the Greek Life Perspectives Workshop, academic, judicial and financial clearance within ten (10) business days after the list is submitted. The following must be reflected at the time of application:
 - a. Academic Clearance – The student must have a cumulative GPA as reflected in the
 - b. Office of the Registrar. Financial Clearance – The student must be current with all financial obligations to the College. This means the student must have a zero balance or be current with the payment plan as outlined by the Office of Student Accounts.
 - c. Judicial Clearance – The student must have no record of judicial action in the last academic year (2022 to present).
 - d. Greek Life Perspective Workshop Clearance – The student must have record of attendance at Greek Life Perspective Workshop Forum during the same fall OR spring semester the student wishes to go through the Membership Intake Process.
4. In the event of an error, the Office of Student Activities will contact the Graduate Advisor and notify the student in writing.
5. The Chapter must notify all students in writing of their application status within five (5) business days after verification.
6. Appeals may be submitted in electronic form to the director of Student Activities within five (5) business days. The Office of Student Activities will work with the graduate advisor to investigate and respond to all appeals. Students should be advised that the outcome of the investigation may not have any impact on the determination of the candidate's status.
7. Presentation of new members must be organized with the approval of the Office of Student Activities, the Dean of Students, Campus Safety and the collaborative Greek council advisor. The presentations must take place seven (7) calendar days after the intake of new members. The presentations may not take place during holidays or breaks in which the campus is closed, important event or program dates intended for the entire campus community or two (2) weeks prior to the end of the semester (fall and spring) to allow appropriate time for academic preparation for projects, tests, quizzes, and final exams.

There will not be any new member intake process approved for mini-semesters or during the summer months.

Mutual Choice

Sorority/fraternity membership is a social experience arrived at by mutual choice and selection. Sorority/fraternity membership is by invitation only. Members of the Arkansas Baptist College administration, faculty, and staff have no influence and/or role in the sorority/fraternity membership intake process. All decisions regarding membership intake selection are made by financial (membership dues paid) voting members of the chapter.

Anti-Hazing Policy

Arkansas Baptist College does not condone or support the practice of hazing. Hazing is contrary to the principles upon which the College and its surrounding community are built. Therefore, hazing is

prohibited on and off campus as a requirement for admission or acceptance into any sorority, fraternity, club, organization or athletic activity.

Anti-Hazing Statement of Standards

The College has an obligation to protect the environment within which fraternities and sororities operate. All students are expected to conduct themselves responsibly and respect the rights of fellow citizens. Any departure from these standards may result in disciplinary action.

Definition of Hazing

The Division of Student Affairs defines hazing as any activity that is intentional, or unintentional due to reckless behavior, occurring on or off campus directed against a student that endangers or is likely to endanger the student's mental and/or physical health or safety regardless of a student's willingness to participate in such activity in connection with or as a condition or precondition of gaining acceptance, membership, office or other status in a school organization. This activity is commonly associated with the student's membership, initiation, affiliation, pledging and/or association with an organization, but may include other activities. The definition includes, but is not limited to:

1. Physical Training ("PT"): requiring calisthenics such as sit-ups, running or any form of physically abusive or excessive exercise; any physical action or restraint that may inflict harm or pain on an individual(s) or place them in a position or situation of possible harm or threat.
2. Forcing, requiring, recommending and/or coercing consumption of alcoholic beverages or any other kind of drug; requiring ingestion of an undesirable or unwanted substance (food, drink, concoction).
3. Harassment, whether verbal, mental or physical of individual(s) or group(s).
4. Scavenger hunts that require or result in theft; forced or coerced road trips and/or kidnapping.
5. Endorsing or conducting pranks such as borrowing or stealing items, destruction of property or objects, pulling false fire alarms, or any other activity in violation of the law.
6. Personal servitude--doing chores or errands for the group(s) or individual members.
7. Sleep interruption or deprivation; conducting activities that do not allow adequate time to study.
8. Morally degrading, humiliating or embarrassing games or activities.
9. Requiring or recommending the wearing of apparel or hairstyles that are conspicuous and or/ normally in bad taste. This includes unusual clothing styles, repetitious wearing of uniforms or repetitious "dressing up" (coat and tie, dresses, t-shirts, jeans, headbands). Clothing that refers directly to the wearer as "pledge" or other terms is not acceptable.
10. Line-ups or any interrogation for information about the history, purpose or direction of the organization that is not consistent with legitimate testing.
11. Requiring or recommending the carrying of unusual items (rocks, plants, pumpkins, pillows).
12. Forced isolation from other members, friends or the rest of the campus. This includes any prohibition on speaking or social interaction, including public marching or walking in lines or "on line".
13. Deception and/or threats contrived to convince the pledge he/she will not be able to join the organization or that purposely inflicts mental stress by not revealing the requirements or basic timetable for joining.
14. Physical brutality, whipping, beating, striking, branding, paddling, kicking, choking, scratching, and electronic shocking and placing harmful substances on or in the body.
15. Screaming at an individual or group.
16. Belittling or humiliating participants.

17. Using derogatory, profane or obscene language toward participants.
18. Requiring participants to engage in morally degrading or humiliating games (as perceived by the College community and/or participants).
19. Performing embarrassing activities that are inhumane and disrespectful.
20. Reputation damaging.
21. Disheveling hair, tearing clothes.
22. Using or asking participants for their' cars, money, clothes or other personal items.

Persons found in violation of hazing will be subject to severe disciplinary actions imposed by Arkansas Baptist College as well as possible criminal charges against individuals. Sanctions for organizations found in violation of the Hazing Policy can result in loss of recognition on campus for an extended period of time. Charges of hazing are referred to and investigated by the Dean of Students and the Arkansas Baptist College Judicial Board.

Sexual Abuse & Harassment

No chapter will tolerate or condone any form of sexist or sexually abusive behavior on the part of its members, whether physical, mental, or emotional. This is to include any actions, activities or events, demeaning to another human being, including, but not limited, to verbal harassment and sexual assault by individuals or members acting together whether on College premises or an offsite location. Members will abide by all local, state and federal laws, in addition to all rules and regulations of the College, as it pertains to sex discrimination, including sexual harassment and violence.

Policy Enforcement

1. This policy is considered an official College policy. Therefore, a violation of this policy is also a violation of Community Standards and the Student Code of Conduct. As a result, any incidents constituting potential violations of this policy will be documented, referred to, and resolved jointly by the Office of the Dean of Students with the support and cooperation of the Office of Student Activities.
2. Student conduct procedures are outlined and can be viewed in Community Standards and Code of Conduct.
3. Communication regarding any alleged policy violation will be with the sorority/fraternity chapter president and/or advisor.
4. Chapters found responsible for violating this policy may be sanctioned to meet with the Dean of Students or the Conduct Hearing Board. This Board is charged with determining appropriate outcomes, interventions, and educational initiatives designed specifically to address problematic behavior or harm caused by an individual or organization.
5. Wherever possible, the Office of Student Activities will work to notify and communicate with graduate and alumnae advisors in addition to staff and representatives from national or international organizations regarding an alleged violation, student conduct proceedings, and outcomes.

6. Each chapter shall implement internal conduct processes to hold members accountable for all applicable College policies. Any sorority/fraternity process(es) does not supersede any official college action but are in addition to any action that Arkansas Baptist College chooses to implement.

For more information, contact the Office of Student Activities or the Division of Student Affairs.

Residential Life and Housing

Students attending Arkansas Baptist College are required to live on campus, as we believe the academic experience is enhanced by the residential and co-curricular learning experiences. The Department of Residential Life and Housing is responsible for general operations and administration of housing, residential education, and living and learning programs. Each of our residence halls offers opportunities for students to meet people from diverse backgrounds and cultures and to develop a sense of community within their own residential building. Our residence halls are staffed with resident coordinators, day and night residence hall monitors and resident assistants who live on each floor and work diligently to support students in all aspects of their college lives. The resident assistants are student leaders who encourage student engagement on campus. A variety of innovative and creative, social, educational, and cultural programs are provided to support the personal, social, academic, and emotional development of ABC students.

**Students who receive an institutional scholarship are required to live on campus in the Residence Halls. This includes student athletes, band/choir members, presidential/dean scholars, student leader scholarships, or any ABC funded scholarship recipient.*

Group living is built on the foundation of individual respect for other students and the facilities. Students have a responsibility to contribute to a positive community environment and to maintain the integrity of the residential facilities. In addition to the Student Handbook and Student Code of Conduct, students living in the residence halls are subject to Residential Life and Housing policies and procedures. Students are encouraged to review the residence hall policies that govern our on-campus living and learning environments at <https://www.arkansasbaptist.edu/housing-dining-services/>.

Housing Lease & Covid-19 Addendum to The Housing Lease

The housing lease and COVID-19 addendum is for one full academic year, both fall and spring semesters. Students receiving room assignments are required to sign a housing lease and COVID-19 addendum to confirm their room for the academic year. This lease, COVID-19 addendum and the Guide to Community Living specifies the regulations for living in the residence halls. Students are advised to read the lease and COVID-19 addendum carefully. The student, parents and/or legal guardian are responsible for paying the housing fee for the full academic year which represents the term of the lease and COVID-19 addendum.

Removal From College Housing

The Coordinator for Residential Life and Housing and/or the Dean of Students may remove a student from College housing for serious misconduct violations. The student will be given up to 48 hours to vacate her residence hall unless a special exception is made by the Coordinator of Residential Life and

Housing. Items remaining in the room will be discarded or donated to a local charity as the items will be considered abandoned property if not removed from the residence halls by the specified date and time.

Responsibility for Personal Property

Students and/or their parents are encouraged to purchase appropriate insurance coverage to address any personal property loss. The College does not assume any legal or financial obligation for any student's personal property that may be lost or damaged in its academic and residential buildings and grounds.

Health & Safety Inspections

Residential Life and Housing will conduct periodic room inspections occurring at least twice per month. The purpose of these inspections is to ensure that safety devices are working properly and to address unsafe conditions. Though not the primary focus of a health and safety inspection, any items found that violate public law, College regulation, Residential Life and Housing policy and/or the terms and conditions of the Housing Contract will be confiscated. Items confiscated are immediately discarded and will not be available to the student. Any student with violations in her room will be referred to appropriate staff for a community standards violation.

Room Changes & Roommates

The Department of Residential Life and Housing reserves the right to change room assignments, assign roommates, and consolidate vacancies at any time. The resident coordinator and/or the Department of Residential Life and Housing must approve all requests for housing changes.

Tuition & Room and Board Fees

All returning residential students will be required to have their balance paid in full by the stated College deadlines. If you have opted for the deferred payment plan, 50% of the semester's fees must be paid by the identified deadline. Residential students who do not meet their institutional financial obligation by the stated deadline may be subject to removal from the assigned residence hall space and placed on a housing waitlist. Students will be notified of the change in residence hall status by electronic communication. The Department of Residential Life and Housing will not guarantee on-campus accommodations once students are placed on the housing waitlist.

Dining Services – Bistro

Arkansas Baptist College provides students with nutritionally balanced food and high-quality meals prepared from scratch, using only the freshest ingredients in the Bistro. Students can enjoy an abundant variety of freshly prepared foods in a fun and engaging all-you-care-to-eat atmosphere! Treat yourself to traditional home-style meals, a salad bar, fruit, sandwiches, hamburgers, hand-tossed pizza, cereal and desserts. Students who live in the residential halls must enroll in the on-campus meal plan option. Students who live off-campus may sign up for the off-campus meal plan. Students may not share meal plans.

Bistro Hours of Operation

Hours of Operation: Monday – Friday

Breakfast: 7:00 AM – 8:30 AM

Lunch: 12:00 PM – 2:00 PM

Dinner: 5:00 PM – 7:00 PM

Sunday & Saturday

Brunch: 12:00 PM – 1:00 PM

Dinner: 5:00 PM – 6:00 PM

During inclement weather, holidays, and no class day hours of operations for the Bistro are as follows:

Brunch: 12:00 PM – 1:00 PM

Dinner: 5:00 PM – 6:00 PM

The Bistro is not open for students, faculty, or staff during winter break, spring break, and during certain weeks in the summer.

Dining Services Inclement Weather Policy

The Bistro will remain open and accessible to the campus community with limited hours of operation, staffing and menu variety in cases of weather-related emergencies or disasters. Students will receive notices of all changes to hours of operation via campus e-mail.

Allergens & Dietary Restrictions

Students seeking accommodations due to allergies or dietary restrictions, must first contact the Office of the Dean of Students, and provide them with supporting medical documentation. If the documentation is accepted and the accommodation granted, the Dean of Students will then forward the documentation to the Vice President for Student Affairs with the recommendation. The Vice President for Student Affairs will then contact a Dining Services staff member to explain the need for the allergy/dietary accommodation. The staff member will then meet with the student to go over the meal options.

Student Affairs

Office of Career Services

First Security Community Union 2nd Floor

The office of career services is a vital resource for college students who are preparing to enter the workforce. This office offers a range of services that are designed to help students identify their career goals, develop their job search skills, and connect with potential employers. Some of the services that the office of career services may offer include career counseling, resume and cover letter review, job search strategy assistance, interview preparation, and networking opportunities. By taking advantage of the resources offered by the office of career services, college students can gain a competitive edge in their job search and lay the foundation for a successful career.

Office of the Dean of Students

Student Services Building Office 4

The office of the Dean of Students is an important resource for all college students. The Dean of Students is responsible for promoting student success and well-being and serves as a liaison between students and the administration. The office provides a wide range of services, including academic support, counseling, advocacy, and community building. Whether you are struggling academically, experiencing personal difficulties, or just need advice on navigating college life, the Dean of Students and their staff are available to help. We encourage you to take advantage of these resources and make the most of your college experience.

Office for Disability Services

The Office of Disability Services is dedicated to providing support and accommodations for students with disabilities to ensure equal access to academic and co-curricular programs. We work closely with faculty, staff, and students to create an inclusive campus community where all individuals can thrive.

Services we provide:

1. **Accommodations:** We work with students to determine appropriate accommodations based on their individual needs. This may include extended test-taking time, note-taking assistance, and more.
2. **Accessibility:** Our office is committed to ensuring that all students have equal access to physical spaces on campus. We work with facilities management to make sure that all buildings, classrooms, and common areas are accessible.
3. **Advocacy:** We advocate for the rights and needs of students with disabilities. We collaborate with faculty and staff to promote disability awareness and inclusion on campus.
4. **Support:** Our office provides ongoing support and resources for students with disabilities. We offer individualized counseling, referrals to campus and community resources, and assistance with navigating the college experience.

If you are a student with a disability, we encourage you to contact the Office for Disability Services to discuss your needs and explore the services and accommodations available to you. Email us at disabilityservices@arkansasbaptist.edu

Office for Student Activities

Student Services Building

The Office of Student Activities is an essential resource for college students looking to enrich their college experience beyond academics. The office provides a wide range of programs and services that promote student involvement in campus life, such as clubs and organizations, community service opportunities, leadership development programs, and social events. The office also serves as a central hub for students seeking information about campus activities and resources. The staff members are dedicated to supporting student growth and success, and they are always available to answer questions, offer guidance, and help students navigate the college experience. Whether you're looking to join a club, volunteer in the community, or just connect with other students, the Office of Student Activities is here to help you make the most of your college experience.

Residential Life and Housing

Ripley Hall and Hill Hall

Residence halls are provided as a part of the educational program of the College in the belief that a residential community provides a more effective context for the type of education to which Arkansas Baptist College is devoted. Students are encouraged to participate fully in the ABC campus living experience through involvement in residence hall activities, staff and student sponsored programs, and daily informal interactions with fellow residents. To promote and sustain an environment conducive to academic success and community living, we have established community expectations that every resident is expected to be familiar with and adhere to. These expectations are supplementary to the College policies outlined in the Residential Life and Housing Handbook, the ABC Student Code of Conduct, and the Student Housing Contract.

Academic Affairs

The academic resources, special learning opportunities, and curricular offerings of the College are the primary means through which academic experiences are structured. Each student is encouraged to take advantage of the many opportunities provided by the College in pursuit of individual goals and objectives, recognizing that the benefits derived are greatly dependent upon the energies invested.

The following pages provide information on the policies governing academic life and the opportunities available to students for the development of their academic capacity. Each student is expected to take personal responsibility for knowing and understanding these policies and expectations. Students should contact the Academic Success, the Vice President for Academic Affairs, or the Registrar's Office with any questions or concerns.

Class Attendance Policy

Students are required to attend every lecture, recitation, and laboratory session of every course in which they are enrolled. The College requires regular class attendance by all students.

While attendance and tardiness are primarily a student- teacher relationship, the College has a concern in the proper fulfillment of such obligations by students. Class attendance must be recorded at each class period. Faculty is required to monitor and report excessive absences.

Students may be allowed as many unexcused absences as hours a course meets weekly. For example, a three-credit course could allow for three unexcused absences. More than six total absences from a three-credit course may subject a student to being administratively withdrawn from the course. Students who miss more than the maximum number of classes may be assigned a grade of “F” in a course because of excessive absenteeism or have overall grade averages reduced. When a student accumulates as many absences as the number of credit hours represented by the course, the instructor will notify the student and document the notification.

A student may receive an excused absence due to participating in programs, activities or events that are sponsored by the college, or when a student is confronted with an extenuating circumstance (death in immediate family, judicial case or serious illness). Official documentation of the situation must be submitted for absences to be excused. Instructors shall set forth at the beginning of the semester their expectations with regard to make-up policy, class participation, tardiness, absences, and other factors that may influence grades.

Academic Appeals for Suspension

Students suspended for failure to meet academic requirements may file a written appeal with the Academic Review Committee. Students must submit a formal letter stating the reason for the appeal and all relevant documents. Academic appeal requests should be submitted within 21 business days at the end of the semester in which the student was declared academically suspended. All appeals must be made before the last day of regular registration. Students are allowed one appeal per academic year.

Extenuating Circumstances

Students must have documented evidence of extenuating circumstances to file for an Academic Suspension Appeal. These extenuating circumstances will be reviewed on a case-by-case basis. Examples of extenuating circumstances include, but are not limited to:

- ☐ **Medical issues**
- ☐ **Homelessness**
- ☐ **Court or legal issues**
- ☐ **Family Emergencies**
- ☐ **Accidents**

Appeals Decision

Once the Academic Review Committee has received the appeal letter from a student with supporting documentation, the Academic Review Committee will convene. If the Academic Review Committee finds that extenuating circumstances are proven, the student will be reinstated on a probationary

status and evaluated at the conclusion of the semester. If extenuating circumstances are not proven, the student will remain on suspension for the following semester.

Appeals Reinstatement

Students who have been reinstated will be restricted to a maximum of 13 credit hours in the fall/spring semester and 7 credit hours in the summer (during the semester immediately following the suspension period). Students will maintain a probationary status during the semester of reinstatement and must earn a 2.0 GPA for the semester. If, at the end of the semester of reinstatement, a student fails to meet probationary conditions described regarding academic appeals, the student will be suspended from the college.

Academic Suspension Waiver

Arkansas Baptist College reserves the right to institute at its own discretion a one-time Academic Suspension Waiver. Under certain conditions a student may be eligible to register, once they agree to the conditions of academic suspension approved by the Academic Review Committee. Students who meet eligibility for this waiver will be contacted and given an Academic Suspension Waiver Application to complete. In addition, students are required to write a letter explaining their circumstances and why they should receive this waiver (What will student do differently to improve academically, if reinstated or readmitted to ABC?). Once the student completes the application, they will meet with an Academic Review Committee member. The committee member will review and explain the terms of the Academic Suspension Waiver to ensure student understands the conditions of the academic suspension waiver terms. Once student states they understand and agree to the terms, student will sign the application. If after the student signs the waiver and does not adhere to the following conditions during the semester of reinstatement or reenrollment, student will be withdrawn from ABC. Once student is withdrawn, the academic suspension policy will be reinstituted.

Academic Suspension Waiver Conditions

Students must:

- **Attend all meetings at the beginning, during and/or end of the semester.**
- **Attend all scheduled courses beginning the first day.**
- **Meet with tutors (see Academic Agreement/Probation Contract).**
- **Meet with academic advisors and retention specialist counselors weekly to monitor progress.**

All academic appeals should be mailed to:

Academic Review Committee
Arkansas Baptist College
1600 Dr. Martin Luther King Jr. Drive
Little Rock AR 72202

Academic Suspension from Institutions Other Than ABC

A student under academic suspension from a credited college or university cannot enroll in ABC. Once the student has served his/her suspension, he/she may enroll at ABC on a probationary basis. He/she may enroll for no more than 13 credit hours and have a 2.0 GPA. If the student does not meet probation requirements, he/she will be suspended.

Student Academic Grievance Process

Students have grounds to appeal their grades only if one of the following situations has occurred:

1. Grades were assigned on some basis other than the basis of academic performance.
2. The instructor used standards which were inconsistent with those applied to other students in the same class or other classes which the instructor taught.
3. The instructor did not adhere to his/her previously announced grading standards and/or policies.
4. The student believes the instructor made some error in calculating or recording the student's grade or grades.
5. The student believes that the instructor has made some error regarding academic honesty or integrity.

The Grade Appeal Process is the only way to resolve a dispute about grades unless the grade dispute arises from discrimination on the basis of race, color, disability, religion, national origin, sex, sexual orientation, age, or status. The Grade Appeal Process consists of both an Informal and a Formal Resolution process.

Informal Resolution (Step I)

- The student should discuss concerns about a final grade with his/her instructor. Most issues are resolved at this level.
- The instructor is expected to discuss the grade with the student. Only if the instructor is no longer working at the college or is otherwise unavailable may the student proceed to appeal the grade without discussing the matter with the instructor.
- After meeting with the student, the instructor may decide to change the disputed grade by submitting a change of grade form to the Office of the Registrar.

No student may file a formal appeal until every attempt has been made to resolve the grade dispute on an informal basis.

Formal Grade Appeal Process (Step II after Informal Resolution Step I) Written Appeal to the Chairperson/Dean

- If the matter is not resolved through informal discussions with the instructor, the student may initiate the formal grade appeal process by submitting a written request to the instructor's chairperson or supervisor.
- A student choosing to initiate the formal grade appeal process must do so within the first month of the semester following the one for which the grade was issued: an appeal for a spring semester grade must be made within one month after the start of fall semester.
- The request should contain:
 - a statement of the problem
 - a description of attempts to resolve the matter directly with the instructor
 - relevant information and documentation in support of the appeal
 - the remedy sought.
- The student should retain a copy of all materials for his or her records.
- The chairperson or supervisor will review the materials, confer with the instructor and student as needed and attempt to resolve the matter.
- The chairperson or supervisor will respond to the student in writing within ten class days and a copy will be sent to the instructor.

The majority of grade disputes should be resolved at this level. If, however, the student is dissatisfied with the Chairperson's or Supervisor's decision for any **legitimate** reason, the student may request a review by the Grade Appeal Committee.

Grade Appeal Committee (Step III)

The Grade Appeal Committee will be convened under the following circumstances:

- A. The chairperson or supervisor, after reviewing the materials submitted by the student and the instructor, refers the case to the committee.
- B. The student is dissatisfied with the outcome of the chairperson's or supervisor's review and requests a review by the committee. The student must request a review within ten class days of receipt of the written response (Step II).

On an annual basis faculty members will be designated to comprise the pool to serve on the Grade Appeal Committee. In the event that the committee is convened, the designated faculty members will be selected to review the appeal. The instructor whose grade is being appealed cannot be selected as a member of the committee reviewing the case. The Vice President of Academic Affairs will convene the committee but will not participate in the proceedings.

- A. The Grade Appeal Committee will review the case within ten class days after accepting the chairperson's or supervisor's referral or the student's written request. The committee will select a chair, follow due process in reviewing the appeal, and reach a decision through majority vote.
- B. The Grade Appeal Committee will reach one of three decisions:
 - **Appeal settled by consent.** The committee reaches a resolution that is mutually acceptable to the student and the instructor who issued the grade. Should the

acceptable conciliation involve a change of grade, the instructor will submit a change of grade form to the Office of the Registrar.

- **Appeal affirmed.** The committee recommends a change of grade to the Vice President of Academic Affairs, who implements the recommendation and notifies the instructor and student of the decision.
- **Appeal denied;** original grade stands. The committee notifies the Vice President, who communicates the decision to the instructor and the student in writing.

Decisions reached by the Grade Appeal Committee and implemented by the Vice President of Academic Affairs are final and binding on all parties.

Timelines

Under unusual circumstances, timelines for proceeding with the grade appeal process may be extended. If the college administrator fails to review or respond within the time limits provided, the student may proceed to the next step of the process. If the student fails to respond within the time limits provided, the appeal shall be deemed to have been withdrawn. These procedures will be reviewed every two years by the Vice President, Deans, Department Chairs, and Academic Council.

Other Student Grievances

A student may have a grievance against an instructor which goes beyond a dispute over the grades received in a course. Such grievances might include allegations that the instructor is harassing students, practicing extortion or not meeting his/her classes. For non-grade grievances, the following procedure shall be followed.

These steps must be accompanied by appropriate documentation (including notation of the date time, location, length, content and final outcome of any discussions).

1. The student should make the grievance known to his/her instructor.
2. If the grievance is not resolved in step one, the student should request a meeting with the Chair of the Department offering the course. The instructor is not to be present at this meeting, but a follow-up meeting shall be scheduled with the instructor and the Department Chair. If the grievance is with the Department Chair, this meeting shall be held with the Dean of Students.
3. If the grievance is not resolved in step two, the proceedings will follow the college's regular channels for resolving grievances; check the Student Handbook or with the Dean of Students.

Academic Policies

Academic Dishonesty

Academic dishonesty involves acts that may subvert or compromise the integrity of the educational process at Arkansas Baptist College. Included is an act by which a student gains or attempts to gain an academic advantage for himself or herself or another by misrepresenting his or her or another's

work or by interfering with the completion, submission, or evaluation of work. These include, but are not limited to, accomplishing or attempting any of the following acts:

1. Altering of grades or official records.
2. Using any materials that are not authorized by the instructor for use during an examination.
3. Copying from another student's paper during an examination.
4. Collaborating during an examination with any other person by giving or receiving information without specific permission of the instructor.
5. Stealing, buying, or otherwise obtaining information about an un-administered examination.
6. Collaborating on laboratory work, take-home examinations, homework, or other assigned work when instructed to work independently.
7. Substituting for another person or permitting any other person to substitute for oneself to take an examination.
8. Submitting as one's own any theme, report, term paper, essay, computer program, other written work, speech, painting, drawing, sculpture, or other art work prepared totally or in part by another.
9. Submitting, without specific permission of the instructor, work that has been previously offered for credit in another course.
10. Plagiarizing, that is, the offering as one's own work the words, ideas, or arguments of another person without appropriate attribution by quotation, reference, or footnote. Plagiarism occurs both when the words of another are reproduced without acknowledgement and when the ideas or arguments of another are paraphrased in such a way as to lead the reader to believe that they originated with the writer. It is the responsibility of all ABC students to understand the methods of proper attribution and to apply those principles in all materials submitted.
11. Sabotaging of another student's work.
12. Falsifying or committing forgery on any College form or document.
13. Submitting altered or falsified data as experimental data from laboratory projects, survey research, or other field research.
14. Committing any willful act of dishonesty that interferes with the operation of the academic process.
15. Facilitating or aiding in any act of academic dishonesty.

Sanctions for acts of academic dishonesty may include but are not limited to: receiving a failing grade for the assignment (F), failure of the course, and/or academic probation or suspension.

Purpose of the Student Code of Conduct

Arkansas Baptist College's Student Code of Conduct ("Code") has been developed for the express purpose of acquainting students with the rules and regulations of Arkansas Baptist College (also referred

to as “College and “ABC”) necessary to ensure the orderly conduct of its students while attaining its lawful goals and objectives.

The Student Code of Conduct establishes the College’s internal disciplinary system. Arkansas Baptist College has both the right and obligation to promulgate discipline as a necessary part of the College’s educational process and to ensure the attainment of the College’s lawful goals and objectives.

Arkansas Baptist College non-academic student conduct process is not intended to be adversarial in nature and is substantially less formal than a court of law. The majority of cases are intended to be handled informally. The purpose of the student conduct judicial procedures is to resolve conflict situations that involve violations of the Student Code of Conduct or other College policies and educate and prepare students for responsible citizenship.

The policies contained in this document supersede all policies previously published in other Student Code of Conduct or Student Handbook manuals. Authority to administer the Student Code of Conduct and student judiciary systems is delegated to the Vice President for Student Affairs and the Dean of Students. In addition, the College reserves the right, for educational purposes, to review any action taken by civil and criminal authorities regarding students. The College also has the obligation to introduce counseling and/or disciplinary action if the student’s conduct has interfered with the College’s exercise of its educational objectives or responsibilities to its members. Disciplinary action taken on this basis shall conform to the terms of the Student Code of Conduct.

Arkansas Baptist College supports the concept of educational discipline. A student admitted to Arkansas Baptist College accepts the responsibility to conform to all Arkansas Baptist College rules and regulations. When a student is not a danger to the College community, or when a repetition of misconduct is unlikely, the College will make an effort to educate the student through a sanction; but should the student demonstrate unwillingness to obey the rules governing conduct, the student will be subjected to the following sanctions: expulsion, suspension, disciplinary probation, disciplinary warning, disciplinary reprimand and any enforcement needed to administer a fair standard of discipline for violations. Students are expected to adhere, and will be held accountable for adhering, to all federal, state, and local laws in addition to all college policies and regulations.

Although the College will make every reasonable effort to make the rules and regulations available, students are responsible for becoming familiar with them. Proven failure to meet this obligation will justify appropriate disciplinary actions including, but not limited to, expulsion, suspension, disciplinary probation, or reprimand.

Jurisdiction

The Code applies to conduct that occurs on College premises; at activities sponsored, conducted, or authorized by the College or by registered student organizations; and to off-campus conduct that adversely affects the College community and/or the pursuit of its objectives. Each student shall be responsible for his/her conduct from the time of application for admission through the actual awarding of a degree, even though conduct may occur before classes begin or after classes end, as well as during the academic year and during periods between terms of actual enrollment and even if their conduct is not discovered until after a degree is awarded. The Code shall apply to a student’s conduct even if the student withdraws from school while a disciplinary matter is pending.

College jurisdiction relative to community standards and student conduct administration shall include Conduct and Behavior that:

- Occurs on college premises.
- Occurs at college-sponsored or college-supervised events regardless of where they occur.
- Occurs off college premises when the behavior may adversely affect the Arkansas Baptist College community and its interests as an academic community.
- Relates to any facet of the relationship between the student and Arkansas.
- Other off campus academic or recognized programs.

Student Conduct Administrators

The following are the representative hearing bodies on the Arkansas Baptist College campus responsible for hearing violations of the Community Standards and Code of Conduct.

1. Residence Hall Coordinators
2. Student Conduct Hearing Board
3. Dean of Students
4. Vice President for Student Affairs
5. Vice President for Academic Affairs (Academic policies only)

Definition of Sanctions

The Vice President for Student Affairs and the Dean of Students are assigned direct operational responsibility for the administration of the Student Code of Conduct within the College. Consistent with this responsibility, certain disciplinary sanctions may be imposed on students found in violation of the Student Code of Conduct. These sanctions for violations of disciplinary rules and regulations may consist of, but are not limited to the following:

Expulsion: Permanent involuntary separation from the College, prohibits a student from ever attending the College, enrolling in any College courses and/or being present on College premises (i.e. property owned, leased, controlled, used, or occupied by the College, including property physically removed from the main campus), without the prior written permission of the Vice President for Student Affairs and the Dean of Students. Expulsion will be noted on the student's permanent record.

Suspension: Involuntary separation or withdrawal from the College for a specified period of time, which prohibits the student from being on the College premises without the prior written permission of the Vice President for Student Affairs and the Dean of Students. It also involves the loss of the privilege of registration for any College courses. A suspended student must petition the Vice President for Student Affairs for readmission. Suspension will be noted on the student's permanent record.

Status of Students Suspended for Disciplinary Reasons: Students under disciplinary suspension are required to disassociate themselves from the College except for appointments that have been made to conduct official college business approved in advance by the Office of the Vice President for Student Affairs.

Disciplinary Probation: Conditions imposed for a definite period of time, with or without a loss of privileges. During this time the student's behavior is monitored and critically examined. Any misconduct

while on disciplinary probation may result in a more serious sanction or expulsion. Probation will be noted on the student's permanent record during the period of probation.

Disciplinary Warning: An official written notice of unacceptable behavior, emphasizing the fact that further misconduct may result in the more serious disciplinary sanction of probation, suspension, or expulsion.

Disciplinary Reprimand: An official written criticism for the first violation of the Student Code of Conduct when misconduct is less serious.

Revocation of Admission and/or Degree: revocation of admission and/or degree may be imposed for fraud, misrepresentation, or other violations of College rules/policies in obtaining admission or a degree, or for other serious violations committed by an applicant or by a student prior to the awarding of the degree.

Other Sanctions: Any enforcement/sanctions needed to administer a fair standard of discipline, including but not limited to:

- Restitution.
- Counseling referral.
- Assignment of a special project.
- Assignment of community service.
- Restriction from membership, participation or holding office in student organizations or other elective office during the probationary period.
- Restriction to the campus and to those activities required of all students by the College. Restrictions from participating in College-sponsored activities, other extracurricular activities, residence hall activities, and/or athletics.
- Expulsion/suspension from the residence halls or a disciplinary room change.
- Revocation of the right to represent Arkansas Baptist College in any honorary position: "Miss/Mister ABC", SGA student delegate, etc.
- Restriction from using an automobile on the campus for a designated period of time.
- Restriction from voting, campaigning for another student, or attending organizational meetings during the probationary period.

Judicial Holds

The Office of the Vice President for Student Affairs or the Dean of Students may place a Judicial Hold on a student with the Office of the Registrar for non-compliance with required sanctions, for nonpayment of fines or other assessments after judicial action, for not cooperating with the judicial process under the Code, for having pending Student Code of Conduct allegations, and for other causes as necessary. In general, students with Judicial Holds may not register for classes, receive copies of their official transcripts or grades, have their transcript released to other parties, or graduate. The Judicial Hold is an administrative action authorized by the Office of the Vice President for Student Affairs or the Dean of Students and is not a disciplinary sanction under the Code for purposes of the internal records of the student.

The College administration, together with the Office of the Vice President for Student Affairs and the Dean of Students, retains the authority to create disciplinary strategies and procedures for addressing any

breach of College policies, the lawful objectives of the College, this Student Code of Conduct, or any other unanticipated violations.

Reporting a Complaint

Any member of the College community may file a written complaint with the Office of the Dean of Students and/or the Vice President for Student Affairs charging a student with violation of the Student Code of Conduct. The complaint must include sufficient facts which would enable the Office of the Dean of Students and/or the Vice President for Student Affairs to decide if further fact finding is necessary.

An allegation of violation of the Student Code of Conduct must include the name of the complainant and should include pertinent facts including, but not limited to, a description of the alleged violation, the date of the alleged violation, the name(s) of the students involved, the time that the alleged violation took place, the location of the alleged violation, and the name(s) of any witnesses.

If an incident which involves an alleged/potential violation of the Student Code of Conduct occurs in College Housing, Housing staff will file an Incident Report form with the Office of the Dean of Students or with the Vice President for Student Affairs. Whenever a Campus Safety Officer responds to an incident which involves an alleged/potential violation of the Student Code of Conduct, the officer will file an Incident Report form with the Dean of Students and the Vice President for Student Affairs.

The Incident Report form will list the following:

1. Date, location and approximate time of the incident.
2. The specific alleged violation.
3. Names and student ID numbers of persons involved.
4. Names of all available witnesses.
5. Actions taken.

Notice of Complaint

Upon receipt of a written complaint, a Campus Safety Incident Report form and/or a campus Housing Incident Report form, the Office of the Dean of Students and/or the Vice President for Student Affairs will immediately initiate some combination of the following:

1. Investigate the complaint, and if the circumstances surrounding the complaint indicate that a violation of the Student Code of Conduct may have occurred, disciplinary charges may be issued. If the preliminary investigation reveals no violation of the Student Code of Conduct, dismiss the complaint as unfounded.
2. The student/respondent shall receive a written notice to be sent to their address of record, College email, hand delivery to appear at the Office of the Dean of Students for a procedural interview at a designated time following the receipt of the notice. During the procedural interview, the student/respondent will be provided copies of the following documents: the Student Code of Conduct, the referral notice, incident report, and/or complaint filed against them.
3. The Office of the Dean of Students will review the complaint to assess if it can be resolved administratively without a hearing. The decision will require mutual consent from all parties

involved and must comply with the Office's standards. Once an agreement is reached, a written confirmation of the disposition shall be signed by all parties involved, and it shall be considered final with no further proceedings. If a student/respondent admits to breaching the Student Code of Conduct, but an agreement cannot be reached regarding the sanctions, the subsequent process will be limited to determining the appropriate sanction(s) through a hearing if deemed necessary.

4. If the complaint cannot be resolved administratively as described earlier, the student/respondent will receive written notice to confirm their desire to proceed with either a Disciplinary Conference with the Dean of Students and Vice President for Student Affairs or a meeting with the Student Conduct Hearing Board within 48 hours of the procedural interview. Failure to provide written confirmation within the stipulated time will result in a waiver of the student/respondent's right to a meeting with the Student Conduct Hearing Board. In this case, a Disciplinary Conference will be scheduled.

Notice to Students

The receipt of all written notices to students shall be deemed complete upon the occurrence of one or more of the following: sending the written notice via United States Postal Service mail or campus mail, addressing the notice to the student's current local or permanent address as listed in the Registrar's records, sending written correspondence to the student's official College email address, or personally delivering the written notice to the student. Once received, it shall be considered as complete and sufficient notice.

Notice of Disciplinary Conference or Hearing

The Office of the Dean of Students and/or the Vice President for Student Affairs is responsible for scheduling the "Disciplinary Conference" or a meeting with the Student Conduct Hearing Board. The Office will:

1. Provide the student/respondent with written notice of the date, time and place of the Disciplinary Conference or the meeting with the Student Conduct Hearing Board at least five (5) business days prior to the scheduled Conference or Hearing, citing the specific charges.
2. Include in the written notice the possible disciplinary sanctions that may be imposed if the charges are proven.
3. Advise the student/respondent of his/her right to present evidence and witnesses in support of his/her position.
4. Advise the student/respondent of his/her right to have access to the case file at least three (3) business days prior to and during the Conference or Hearing.
5. The written notice shall inform the student/respondent of their right to select an adviser, who can be a current full-time student, faculty, or staff member of Arkansas Baptist College. The adviser cannot be an attorney, law student, or a relative of the student/respondent.

During the hearing proceedings, both the complainant and accused student have the right to have one adviser present, who can address the hearing board only with permission from the Chair. If the

student/respondent intends to have an adviser attend the Conference or the Hearing. The adviser may be a faculty or staff member of ABC, friend, or mentor. The student must provide the Office of the Dean of Students and the Vice President for Student Affairs with the adviser's name and phone number at least three (3) business days before the Conference or Hearing. Failure to provide the required notice will result in the student/respondent proceeding without an adviser. If the student/respondent's adviser is an attorney, family member, or witness he/she will be requested to leave the conference or hearing. The adviser is not authorized to appear in place of the student/respondent.

In the event of a Disciplinary Conference or Hearing for a student/respondent charged with a violation of the Student Code of Conduct, the College must adhere to principles of equity while conducting the disciplinary proceedings. It is not necessary for a student to be represented by legal counsel to receive due process.

Request for Postponement

In the event of circumstances beyond a student/respondent's control, a request to postpone the Disciplinary Conference or Hearing can be made in writing. The request must state the reasons for the postponement and be received by the Office of the Vice President for Student Affairs and the Dean of Students at least two business days before the scheduled Conference or Hearing, by 5 p.m.

Student Rights in the Conduct Process

This information applies to both the complainant and the accused student, except where noted.

1. To have a copy of the written complaint and have the complaint explained clearly and fully at every level of the conduct process.
2. To request in writing to the Dean of Students that separate hearings are conducted if more than one student has been accused of a Community Standards and Code of Conduct violation arising out of a common incident.
3. To hear testimony and/or see written statements concerning the complaint.
4. To be informed of the names of all witnesses who will provide oral and/or written statements, unless the Dean of Students makes special provision for a witness to remain anonymous, in the event that it is determined that the identity of the witness is not critical information necessary for a party to fully respond to the testimony/written statement.
5. To refute oral and/or written statements made by witnesses and other parties.
6. To have a fair and prompt hearing, and to have any delays in scheduling explained.
7. To be notified promptly of the resolution of the complaint.
8. To be advised of the appropriate appeal process. Complainants do not have the right to appeal all types of violations.

Disciplinary Conference Procedures

The Dean of Students or their designee will investigate the complaint, including but not limited to reviewing incident reports, reviewing witness statements and interviewing witnesses. Before a decision is rendered, the student/respondent will be given an opportunity to respond to the information obtained by the Dean of Students or designee. If the student/respondent fails to appear for the Disciplinary Conference, the Dean of Students or designee will decide the case and impose an appropriate sanction.

based upon the information obtained in the investigation. No adviser may appear in place of the accused student/respondent.

The Dean of Students will simultaneously advise the complainant and the student/respondent in writing of the decision within five (5) business days from the close of the investigation. At the same time, the Dean of Students will make a copy thereof available to the complainant and the student/respondent in the Dean of Students Office.

Student Conduct Hearing Board Committee and Procedures

Committee

1. The Student Conduct Hearing Board Committee shall consist of five (5) students appointed by the Student Government Association (SGA), two (2) faculty members appointed by the Faculty Senate, and two (2) staff members appointed by the Staff Senate.
2. Five (5) alternates shall be appointed, with three (3) by the Student Government Association, one (1) by the Faculty Senate, and one (1) by the Staff Senate.
3. Faculty and staff committee members and alternates shall serve two-year terms, while student committee members and alternates shall serve one-year terms. They may be appointed for consecutive terms. A quorum shall consist of five (5) persons, with at least three (3) being students and two (2) being faculty or staff member. If a quorum is not met, but at least three people are present, with one being a student, the student/respondent may request that the Hearing proceed with those in attendance.
4. The Vice President for Student Affairs shall select the chair for an academic year. If the chair is unavailable for a Hearing, the Vice President for Student Affairs shall appoint an interim chair.
5. The Vice President for Student Affairs may remove a committee member for justifiable cause.
6. If a committee member resigns, cannot serve, or is removed from office, the Vice President for Student Affairs will choose one of the alternates to fill the vacancy.

Procedures

1. The chairperson has the authority to manage the Hearing and take any necessary steps to ensure that the process is fair, organized, and efficient. As the presiding officer, the chair may remove anyone who fails to comply with the rulings or disrupts the Hearing.
2. If a party believes that a committee member is personally biased, they may challenge the member. The remaining members of the committee can vote on the disqualification of the challenged member by secret ballot, and a majority vote is required for disqualification.
3. Unless the student/respondent requests an open hearing in writing to the Vice President for Student Services/Dean of Students at least three business days prior to the hearing, the Hearing will be closed to the public.
4. The Hearing can proceed in the absence of the student/respondent if they fail to appear.
5. Witnesses, other than the complainant and student/respondent, may be excluded from the Hearing during the testimony of other witnesses. All participants, except the Committee members, shall be excluded during Committee deliberations.
6. The chair has the authority to determine what evidence is admissible, and formal rules of evidence are not applicable.
7. The written evidence offered may be examined by the student/respondent, complainant, and Committee members. Questions for all witnesses must be directed through the Chair.

8. The student/respondent cannot be compelled to testify against themselves, and their silence cannot be used against them.
9. Individuals mentioned in the statements of the student/respondent, complainant, and witnesses have the right to respond briefly. The request to exercise this privilege during the Hearing must be made in writing or orally to the chair, who will determine the length of the response and when it will be heard during the Hearing.
10. Disciplinary proceedings conducted under this Conduct Code does not follow formal rules of process, procedure, or technical rules of evidence used in criminal or civil court.
11. The advisor of the student/respondent can speak only at the request of the chair, and they cannot question the members of the Committee, the complainant, or any witnesses.
12. Witnesses will be heard one at a time and may be excused from the Hearing by the chair after testifying.
13. After all available evidence and witnesses have been examined and questioned, all persons except members of the Committee must leave the room.
14. The members of the Committee will then make a determination of the case, including sanctions, which will be forwarded to the Office of the Vice President for Student Services/Dean of Students. The Committee's decision will be based on whether it is more likely than not that the accused student/respondent violated the Student Code of Conduct, and it will be made by a majority vote.

Sanctions

Where it is determined that the Student Code of Conduct has been violated and sanctions of less than suspension or expulsion are imposed, the decision of the Student Conduct Hearing Board or the Disciplinary Conference shall be final and will be communicated to the student/respondent by the Office of the Dean of Students. Where it is determined that the Student Code of Conduct has been violated and expulsion or suspension is recommended, the Vice President for Student Affairs will review and either affirm, reject, or modify the action taken by the Student Conduct Hearing Board the Disciplinary Conference. Should he/she reject the sanction, the Vice President for Student Affairs will return the recommendation to the Disciplinary Conference or the chair of the Committee with a request for reconsideration of the sanction. If the sanction(s) is approved or modified the Dean of Students shall notify the student/respondent in writing.

Appeals

A request for appeal does not provide an opportunity to revisit the initial conduct case, nor will it be granted merely because a student/respondent or student organization disagrees with the outcome of the original case decision. Any sanctions issued by the Student Conduct Hearing Board or Disciplinary Conference will remain in effect throughout the appeal process.

Students/respondents may only file an appeal if it has been determined that a violation of the Student Code of Conduct has occurred and the sanction imposed is expulsion or suspension. Similarly, a student organization may only file an appeal if a violation of the Student Code of Conduct has been established, and the sanction imposed is suspension or cancellation of the organization's registration or recognized status with the College.

An appeal may only be based on the following grounds:

1. If new information, which was not available during the original hearing, has been discovered and could affect the decision made in the initial conduct case, an appeal may be considered.
2. If there was a procedural error that resulted in material harm or prejudice to the student/respondent or organization, an appeal may be granted. However, deviations from designated procedures will not be sufficient grounds for an appeal unless they result in material harm or prejudice.
3. If the sanction imposed as a result of the initial hearing was deemed excessively severe in relation to the violation committed by the student/respondent or organization, an appeal may be submitted. Appeals based on claims of excessive sanctions will not affect the finding of "in violation" and only relate to the sanctions imposed.

A student/respondent or organization may appeal a decision made by the Disciplinary Conference or the Student Conduct Hearing Board Committee by submitting a written appeal that includes a detailed explanation of the reason(s) for the appeal within five (5) business days of receiving written notification of the decision. The grounds for appeal must align with the outlined reasons for appeal mentioned above. Within ten (10) business days of receiving the appeal, the appropriate appeal Committee will make a decision and inform the complainant, student/respondent or organization in writing. The appeal Committee may either uphold, reverse, or modify the original conduct code decision.

Appeals of decisions made by the Disciplinary Conference will be heard by the Student Conduct Hearing Board Committee. The Dean of Students or the Vice President for Student Affairs will present the charges and facts of the case to the Student Conduct Hearing Board Committee.

Appeals of decisions made by the Student Conduct Hearing Board Committee will be heard by the Vice President for Student Affairs Appeal and Review Committee. The Review Committee will consist of one student, one faculty member, and one staff member appointed by the Vice President for Student Affairs. Faculty and staff members will serve two-year terms, while student members will serve one-year terms, and all Committee members may serve consecutive terms. The Vice President for Student Affairs will present the charges and facts of the case to the Review Committee.

The decision made by the appeal Committee will be final. If the appeal Committee upholds the decision, the student/respondent or student organization will have exhausted all avenues of appeal within the College and must comply with the sanction(s) imposed.

Mediation

The Vice President for Student Affairs, Dean of Students, or the Student Conduct Hearing Board Committee may refer appropriate matters to mediation. Students who are referred to mediation are required to attend a mediation session and make a sincere effort to resolve the dispute. If the matter is successfully mediated, the outcome is final, and no further proceedings or appeals will be pursued. The parties involved in the mediation will receive a written statement outlining the mediation results. Mediators do not have the authority to make a decision about the dispute's outcome. Their role is to facilitate communication between the parties, identify their underlying needs and interests, explore potential solutions, and help them reach an agreement on how to resolve the dispute. Typically, two comediators will meet with the participants and ask each person to describe their perspective of the conflict. The mediators will ask questions to gain a better understanding of the conflict and each person's needs and concerns. The mediators may also hold private conversations with each participant to discuss their position further. Additionally, the mediation process includes generating creative options for

resolving the dispute and assisting the parties in reaching an agreement. If the dispute is not resolved through mediation, disciplinary proceedings will proceed.

Disciplinary Withdrawal

If withdrawal of a student occurs as a result of disciplinary action by the College, the student is held accountable for the full term for payments owed to the College for the semester in which the disciplinary action was taken.

Official Withdrawal

The Vice President for Student Affairs or the Dean of Students may place a “Judicial Hold” on the records of any student who withdraws from the College prior to the resolution of pending disciplinary action. The Vice President for Student Affairs or the Dean of Students may also place a notation on the student’s official transcript indicating “disciplinary proceedings are pending.”

Medical Mandatory Withdrawals

If a student exhibits behavior that strongly suggests they may cause harm to themselves, others in the college environment, or to personal or college property due to (a) mental disorders, (b) emotional disorders, and (c) other psychological or physical behaviors, the college may administratively withdraw the student under one or more of the following conditions:

1. If the student is unable to meet the reasonable standards of conduct required by the college;
2. If the student continues to engage in behavior that is expressly prohibited by the Student Code of Conduct;
3. If the student consistently suggests an intention to do harm to oneself or others, either through attempts or repeated threats (including written, physical, verbal, nonverbal, etc.); and/or
4. If the student presents an imminent danger to others, whether through written, physical, verbal, nonverbal, etc. means.

Except in extreme emergencies, the student will be provided with a statement indicating the type of behavior exhibited and the evidence that shows that the student has failed to meet reasonable college standards of academic or social conduct. The statement will also indicate that because of these circumstances, the student may be subject to involuntary medical withdrawal from the college and must be presented to a psychiatrist or licensed mental health provider for assessment within 30 days of suspension, providing verifiable proof thereof. The student is strongly encouraged to provide written consent allowing their mental health provider to communicate with the Vice President for Student Affairs.

The psychiatric review is a condition for readmission. If the evaluation supports withdrawal from the college, the student will be provided an informal hearing or meeting with the appropriate Student Affairs administrator, who may be accompanied by the college's mental health professional.

If the student is suicidal, they must be assessed immediately by a psychiatrist or medical doctor to determine if psychiatric hospitalization is necessary. If psychiatric hospitalization is not recommended, the student must schedule a meeting with the Vice President for Student Affairs. If psychiatric hospitalization is recommended, the student is strongly encouraged to provide written consent for the Vice President for Student Affairs to communicate with their psychiatrist.

Any student withdrawn from the college for medical, emotional, psychological, or physical reasons may return upon written application for readmission sent to the Vice President of Student Affairs and the Dean of Students or their designee. If the sanctions and conditions imposed for the inappropriate behavior have been satisfied and a psychiatrist or licensed mental health professional recommends in writing that the risk of threat to self, others, or personal or private property by the student is sufficiently diminished or non-existent to the extent that the student's presence in the college environment is no longer dangerous to anyone, the student must then appear before the Office of the Vice President for Student Affairs in an informal manner as a prior condition to readmission. The same individuals present at the informal hearing used to withdraw the student may also be present at the readmission hearing. A student may be readmitted with the understanding that any reoccurrence of similar behavior may reactivate the withdrawal process.

Interim Measures

The Vice President of Student Affairs and/or the Dean of Students/designee may assign an interim action(s) upon learning of potential violations, if the allegation(s) of misconduct is apparently reliable and relates to the safety and/or welfare of any person, College property, or any College function. The assignment of an interim action(s) restricts the student from certain privileges at the College in the interest of safety and/or the well-being of the community or the student themselves; it does not mean the student has been found responsible for violating the Student Code of Student Conduct. Interim actions can include:

1. modification or suspension of the ability of a student to be present in specific areas or buildings on campus;
2. modification or suspension of the ability of a student to be present on college property in its entirety;
3. modification or suspension of the ability to attend class(es);
4. modification or suspension of the ability to participate in a college-related activity;
5. the issuance of a No Contact Restriction.

The interim action(s) will be communicated in writing to the student, by email or in person and is effective immediately. Failure or refusal to take receipt of notification will not negate or postpone said interim action. Interim actions are in effect from the time of issuance until the Dean of Students/designee determines that the reason for imposing the interim action no longer exists and the student receives written notice that the interim action is no longer applicable or until the resolution of the student conduct matter through the Student Conduct Process. A procedural interview with the student or student organization shall be scheduled within five (5) business days of the interim suspension. Consideration will be given during the procedural interview to whether the interim suspension should end or remain in effect until the conclusion of the disciplinary process. If the interim suspension remains in effect throughout the disciplinary process, the Office of the Vice President for Student Affairs or the Dean of Students will expedite the scheduling of a date for the Disciplinary Conference or a Student Conduct Board Hearing. It is the student's responsibility to find a place to stay pending completion of the hearing process.

Student Conduct Amnesty Policy

Any individual (including, a witness, or a third party) who shares information in the interest of any individual's health and safety will not be subject to disciplinary action by the College for their own personal consumption of alcohol or other drugs at or near the time of any incident, provided that they did

not harm or place the health or safety of any other person at risk. The College may require an educational meeting where support, resources, and educational counseling options may be discussed and potentially required with a learning action plan for an individual who has engaged in the illegal or prohibited use of alcohol or drugs.

Interim No Contact Orders

The Vice President for Student Affairs, the Dean of Students, or designee may immediately issue a no contact order on an interim basis prior to a Disciplinary Conference or Hearing if it is believed necessary to protect a person's safety and/or preserve a safe environment. A no contact order prohibits a student's or a student organization's contact with a specific individual or individuals.

Procedures for Readmission from Disciplinary Suspension

To request readmission after being suspended for disciplinary reasons, a student must submit a written request for a readmission interview with the Office of the Vice President for Student Affairs and Dean of Students. Students who have been suspended are eligible to apply for the interview two weeks before the end of their ineligibility period. If the suspension is indefinite, the student may apply at the beginning of any long-term semester except the one immediately following their initial suspension. The student must wait until the time period cited in the suspension communication has passed before being readmitted. It is not mandatory to apply for readmission even if eligible, and complying with the terms and conditions of the suspension is the best way to increase the likelihood of a favorable decision. The Office of the Vice President for Student Affairs and Dean of Students will make a decision about readmission after the interview, and the decision will be communicated to the student in writing.

Title IX

Title IX Policy and Campus Process

What Is Title IX?

Title IX of the Education Amendments of 1972 prohibits discrimination on the basis of sex in education programs and activities that receive federal financial assistance. Title IX provides:

“No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance[.]”

Federal agencies that provide grants or other forms of financial assistance are responsible for enforcing Title IX's nondiscrimination requirements. The U.S. Department of Education (ED) provides financial assistance to schools and colleges, as well as to certain other entities, including vocational rehabilitation programs and libraries.

Title IX may apply to a variety of sex-based discrimination and harassment, including, but not limited to:

- Sex-based harassment;
- Sexual violence;
- Discrimination related to pregnancy;
- Failure to provide equal athletic opportunities;
- Sex-based discrimination in science, technology, engineering, and mathematics (STEM) courses and programs;
- Discriminatory application or enforcement of dress code policies; and
- Retaliation against an individual for reporting discrimination or participating in a Title IX process.

I. What Happens When a Report Is Made?

Making a report does **not automatically mean that a formal investigation will occur**. When a report is received, the Title IX Coordinator may meet with the person making the report to understand the concerns and explain available options and resources.

Depending on the circumstances, the Title IX Coordinator may:

- Meet with the person reporting the concern;
- Explain the individual's rights and available options;
- Discuss supportive measures that may be available;
- Determine whether the reported conduct falls within the scope of the institution's Title IX policy;
- Explain available informal and formal resolution options; and
- Discuss confidentiality and the extent to which information can be kept confidential.

Supportive measures may be considered when appropriate to help students continue to participate in educational programs and activities while a matter is being addressed.

The Title IX Coordinator will explain the applicable process and available options based on the circumstances of the report.

II. What Does a Title IX Investigation Look Like?

When a matter proceeds through the formal Title IX process, the process generally includes the following stages:

1. **Notice** – The parties receive information about the allegations and the applicable process.
2. **Investigation** – The investigator gathers relevant information and evidence, which may include interviews with the parties and witnesses and a review of relevant documents or other evidence.
3. **Evidence Review** – The parties are provided an opportunity to review relevant evidence and respond in accordance with the institution's Title IX procedures.
4. **Investigation Report** – The investigator prepares a report summarizing the relevant evidence and information gathered during the investigation.
5. **Live Hearing** – When required under the applicable Title IX procedures, the parties participate in a live hearing where the allegations and evidence are considered.
6. **Determination** – A decision-maker determines whether the applicable Title IX policy has been violated based on the established standard of proof.
7. **Sanctions and Remedies** – If a policy violation is determined to have occurred, appropriate sanctions and/or remedies may be imposed or provided in accordance with institutional policy.
8. **Appeal** – Parties may have the opportunity to appeal a determination or other decision when permitted by the institution's Title IX procedures.

The specific steps, rights, responsibilities, timelines, and procedures that apply to a Title IX matter are governed by the institution's current Title IX policy and applicable federal and state law.

Types of Violations

Level I Behavior Violations

Level I behavior violations are those which primarily affect an individual or, if others are involved, are unintentional and non-malicious. Such behaviors are most likely to be addressed in ways not formally connected with the student disciplinary system. Mediation, counseling referrals, restitution with no disciplinary action, and/or educational conversations with an administrator that do not affect a student's disciplinary status are some of the actions most likely to be employed.

It is also possible that Level I behavior violations are those that would be considered relatively minor violations of the Student Code of Conduct, particularly if they are actions that have some impact on the community and the individual but have not caused serious harm or been detrimental to the community in significant ways. If they occur in the residence halls, and it is the first time a student has been involved in such an incident, these behaviors are most likely to result in the student having an administrative meeting with the Manager of Residential Life and Housing. Under some circumstances the more informal actions described above may be appropriate, but that decision is at the discretion of the Dean of Students. The below sanctions are described as Level I sanctions.

Level I Behavior Violations may include, but are not limited to, the following:

- Improper disposal of Trash
- Posting policy violation
- Solicitation policy violation
- Quiet/ courtesy hours violation
- Violation of parking regulations
- Violation of residence hall regulations (room inspection, overnight guest, curfew policy)

Level I Behavior Violation Sanctions

Behavior resulting in Level I sanctions tends to be relatively minor in nature, with the primary concern being for the individual. The goals of these sanctions are mostly to educate the student regarding the inappropriateness of their behavior, resolve issues that may have resulted in problematic behavior, and restore ties to other members of the community.

Generally, Level 1 sanctions include:

- Letters of warning/disciplinary reprimand
- Educational sanction
- Restitution
- Letters of apology
- Mediation
- Community service (relatively small number of hours able to be completed in a month)

Level II Behavior Violations

Level II Behavior Violations include repeated or more serious instances of Level I Behavior Sanctions. In addition, these behaviors tend to have a greater impact on the community as well as broader implications for the individual, resulting in a more significant violation of the Student Code of Student Conduct. While it is possible that these kinds of cases may be heard by the Residential Life and Housing Manager, it is also likely that they will be referred to the Dean of Students or his/her designee for action. Likely sanctions are described as Level II sanctions (see below).

Level II Behavior Violations may include, but are not limited to, the following kinds of behavior:

- **Repeated or more serious instances of Level I Behavior Violations**
- Refusing to comply with College employees
- Disorderly conduct
- Insubordination towards Faculty or Staff

- Public intoxication/disruptive behavior (alcohol and/or drugs)
- Theft of college property (relatively minor)
- Marijuana possession (personal use)
- Marijuana/drug use
- Possession of drug paraphernalia
- Giving ID card to another student or to a non-student
- Theft of college property or another person's property – minor
- Disrupting a College class, event or activity
- Violation of traffic regulations
- Illegal file sharing
- Illegal entry
- Preventing College personnel from doing their jobs
- **On-campus and off-campus disruption such as hosting large parties, noise ordinance, illegal parking, etc.**

Level II Behavior Violation Sanctions

Those sanctions used at Level II include any of the sanctions described in Level I. In addition to concerns for the students involved, these sanctions begin to weigh more heavily the impact of the student's behavior on the community. The focus of the disciplinary system becomes one of concern for the continued membership of the student with the community. Sanctions imposed attempt to correct the behavior and prevent further violations. While sanctions described in Level I may be utilized at this level, additional sanctions likely to result at this level include the following:

- Disciplinary probation
- Residential probation
- Educational sanctions
- Community service (significant number of hours)
- Restitution
- Mediation
- Restrictions (residential, visitation, parking/driving, contact, etc.)
- Residential relocation
- Counseling assessment
- Letters of apology
- Behavioral contract

Level III Behavior Violations

Level III Behavior Sanctions are more serious violations of the Student Code of Student Conduct. They include repeated and/or more serious instances of actions described as Level II behavior violations; in addition, these behaviors are more intentional, malicious and/or have a greater likelihood of causing harm. These cases will also be referred to the Dean of Students or his/her designee. Likely sanctions are described as Level 3 sanctions (see below).

Behavior that would be considered Level III Behavior Sanctions would include, but are not limited to:

- **Repeated or more serious instances of Level II Behavior Violations**
- Fighting

- Verbally abusing another person
- Harassing another person (calls, emails, in-person confrontations)
- Lewd behavior
- Tampering with fire equipment
- Damage to College property
- Damage to another person's personal property
- Providing alcohol to underage students
- Hosting parties of any size with underage drinking
- Drinking/using drugs requiring medical intervention
- Possessing/displaying a weapon or weapon paraphernalia
- Pulling a fire alarm falsely
- Possession of narcotic/prescription drugs
- Theft of college property – major
- Theft of another person's property – major or minor
- Belligerent/abusive behavior
- Disrupting a College class, event or activity
- Forging a College employee's signature
- Embezzling funds
- **Social Media Policy (minor)**

Level III Behavior Violation Sanctions

This level of sanctioning addresses behavior which is of an elevated concern regarding the individual and may signify behavior considered to pose a threat to the campus community and/or the individual. The focus of the disciplinary system is to attempt to balance the education of the student with the protection of the College community. While many of the sanctions described in Level II may apply, additional sanctions likely to result at this level include the following:

- Social probation
- Residential relocation
- Residential suspension
- Educational sanctions
- Community service (significant number of hours)
- Restitution
- Counseling referral
- Restrictions (residential, visitation, parking/driving, contact, etc.)
- Behavioral contract

Level IV Behavior Violations

Level IV Behavior Violations are actions that would be considered the most major violations of the Student Code of Student Conduct. These include repeated and/or more serious instances of actions described as Level III Behavior Sanctions, but also are individual actions that are particularly egregious and are of most concern for the community. Level IV Behavior Sanctions will always be heard by the Dean of Students or his/her designee. Likely sanctions are described as Level 4 sanctions (see below).

Behaviors that would be considered Level IV behavior violations include, but are not limited to:

- **Repeated or more serious instances of Level III Behavior Violations**
- Having nonconsensual sexual contact with another person
- Rape or attempted rape
- Sexual Harassment
- Drugging another person's drink
- Hitting or causing injury to another person with no physical provocation
- Hazing
- Threatening others with a weapon
- Using a weapon or having weapon paraphernalia (ammunition, bombs, chemicals, etc.)
- Felony level possession of drugs
- Selling marijuana/drugs
- Selling of narcotic/prescription drugs
- Setting/causing fire
- Attempt at self-injury (dependent on circumstances and determined in conjunction with counseling staff)
- **Social Media Policy (major)**
- **Hate Crime**

Level IV Behavior Violation Sanctions

At this level, the primary focus of the disciplinary system becomes one of concern for the safety and quality of life of the College community rather than the individual. It is likely that this means an individual is no longer able to continue as a member of the Arkansas Baptist College community. While some sanctions described in Levels II and III may be imposed, the following sanctions are likely to result:

- Suspension from Arkansas Baptist College for a specified period of time, likely to include conditions for return
- Ban from Arkansas Baptist College campus
- Expulsion from Arkansas Baptist College

Nondiscrimination Statement

Arkansas Baptist College is committed to providing equal opportunity for all persons and will not discriminate in regard to admissions, programs, or any other educational function and service on the basis of race, color, creed, national origin, gender, religion, age or disability toward any person who meets the College's admission criteria and is willing to abide by the College's standard of conduct. In employment, including hiring and other conditions of employment, Arkansas Baptist College will not discriminate on the basis of race, color, creed, national origin, gender, age, or disability. Arkansas Baptist College follows the principles of affirmative action and operates within the regulation of Title IX of the Educational Amendment of 1972, as amended, and other federal law prohibiting discrimination.

Student Rights, Responsibilities, and Requirements

Students at Arkansas Baptist College have all the rights and privileges expressed in the constitutions and laws of the United States and of the State of Arkansas. Basic to these rights is the guarantee of freedom of speech and assembly. However, these rights and freedoms must be exercised in a manner that neither disrupts nor interferes with the academic programs and administrative processes of the College. Each

student at Arkansas Baptist College is expected to become familiar with all published policies, rules, and regulations of the College. The Office of the Vice President for Student Affairs and the Dean of Students will make every effort to ensure that these published policies are available to each student. The student is responsible for any violation of the policies, rules, and regulations.

The College requires each student to be responsible for the following:

Identification Cards – Each student is issued a photo ID card, which must be retained while the student is registered at the college. All ABC students are required to carry an ABC I.D. card at all times and be willing to produce it promptly upon request of any College official acting within proper authority. ABC I.D. cards are not transferable, and lost cards must be reported to Campus Safety within 24 hours of the student's first awareness of loss. Students failing to comply with this directive will be held accountable for any abuse of the I.D. card and must bear the cost of replacement. Any person who alters or intentionally mutilates a college ID card, or who allows another to use their ID card will be subject to disciplinary action.

An ID card is subject to confiscation by an agent of the College when acting in the performance of their duty if:

- I. The ID card is in the possession of an individual other than the person to whom the ID card was issued and this person is attempting to use the ID card to represent themselves as a registered student, or,
- II. The ID card is presented by the person to whom it was issued but it is not valid for the current term of registration, and the individual uses the ID to access college services for duly registered students.

Mobile Devices, iPads, Headphones, and Tablet Use – Technology is an integral component of learning both inside and outside of the classroom. Mobile, tablet and headphone devices such as cell phones, iPhones, iPods, headphones, AirPods, and iPads can be used to enhance the classroom learning experience. This technology is permissible only when authority is granted. Failure to adhere to this policy will result in disciplinary action.

Correct Current Address – Every ABC student is required to have a current local and permanent home address on file in the Registrar's Office. Students are held accountable for any communication sent by the College to the student's address of record. Every student is required to file an address through which close relatives may be contacted in the event of an emergency. A campus or U.S. post office box mailing address is an insufficient local address for campus residents and must be augmented by the student's physical address.

Vehicle Registration and Parking – All ABC students operating motor vehicles on campus must register such vehicles with the Office of Residential Life and Housing. Vehicles which are not registered and cited for violations are subject to towing at the owner's expense. Vehicle Registration allows the college to identify the owner in case there is an emergency.

Withdrawal From the College – A student who voluntarily withdraws from the College must surrender their ABC I.D. card to the Office of the Registrar. Any student who is involuntarily separated from the College through the disciplinary process must surrender their ABC I.D. card to the Dean of Students or the Vice President for Student Affairs.

Campus Alcohol and Drug Policy

Arkansas Baptist College adheres to and complies with the Drug-Free Schools and Communities Act Amendments of 1989, which requires an Institution of Higher Education to certify with the United States Department of Education that it has adopted and implemented programs to prevent the illicit use of drugs and the abuse of alcohol by students and its employees. The Drug-Free Schools Act, that has been adopted by the College, will be published and disseminated to students and employees periodically and will be enforced under this section. *ABC exercises a zero-tolerance policy for students caught using, selling, distributing, manufacturing, alcohol, drugs, or weapons.*

Drug Policy

- a. The use, manufacturing, possession, sale, acquisition, or distribution, delivery of any narcotic, medicine prescribed to someone else, chemical compound, illicit drug, or controlled substance, drug-related paraphernalia and drug paraphernalia containing drug residue on the college campus, within the residence halls, at college-sponsored activities, or on buses or other conveyances engaged by the college to transport students to and from a college event is expressly prohibited.
- b. Students found under the influence of illegal drugs and or/synthetic drugs on the campus of Arkansas Baptist College or at College sponsored activities and events (including individual residence halls rooms and apartments) are prohibited.
- c. Abuse and medically unsupervised use of prescription drugs are prohibited.
- d. Knowingly in the presence of others who possess illegal drugs or paraphernalia, or to be in the presence of a person using illegal drugs is prohibited.
- e. Students found in violation of this policy will be subject to strict enforcement of sanctions as outlined in the college's sanction violation list and possible criminal charges. Illicit drugs include, but are not limited to PCP, marijuana, cocaine, heroin, crack, amphetamines, LSD, sedatives, hypnotics, and inhalants.

Alcohol or Drug Possession Disclosure

Arkansas Baptist College retains the right to notify parents or legal guardians of a student regarding any violation of federal, state, or local law or of any rule or policy of the College governing the use or possession of alcohol or a controlled substance, regardless of whether or not that information is contained in the student's education records, if:

- I. the College determines that the student has committed a disciplinary violation with respect to such use or possession. Such notices must be approved by the Office of the Vice President for Student Affairs or Dean of Students.
- II. Use of false identification to purchase, possess, sell, distribute, deliver, or consume alcohol while under the legal drinking age as an Arkansas Baptist College student is prohibited.

Any violations of the Arkansas Baptist College Drug Policy will result in disciplinary actions by the Division of Student Affairs and/or referral to law enforcement officials. The College reserves the right to confiscate, retain, dispose of, and destroy any and all drug related items regardless of value or ownership.

Smoking Policy

1. Smoking on the premises, which include residence hall rooms, academic buildings, gymnasium, stairwells, restrooms, dining facilities, and public common areas of Arkansas Baptist College are prohibited.
2. Smoking is also prohibited in College vehicles unless the vehicle is assigned to one person for his/ her own use.

Smoking on all Arkansas Baptist College campus property is regulated under the authority of Act 462 of the 76th General Assembly of the State of Arkansas, 1987. In accordance with this statute and recognizing the ill effects of tobacco on its smoking and non-smoking faculty, staff, students, and visitors, the College and its assembly declare that Arkansas Baptist College buildings shall be **Smoke-Free**. Smoke-free is defined as: “no use of smoking materials such as legal and illegal cigarettes, vapes, hookahs, and tobacco of any kind on the Arkansas Baptist College premises which include buildings, outside hallways, and stairwells.

Bystander Conduct

Arkansas Baptist College expects all students to exhibit appropriate behavior at all times. Inappropriate behavior includes, but is not limited to, engaging in illegal drug and alcohol consumption, engaging in sexual misconduct, engaging in hate speech or discrimination, or any other behavior that violates the college's code of conduct or local, state, or federal law.

In particular, the college prohibits bystanders from encouraging illegal alcohol and drug consumption. Encouraging or enticing such behavior creates an unsafe and unhealthy environment that is detrimental to the well-being of the campus community.

Any student found engaging in or encouraging inappropriate behavior will be subject to disciplinary action, which may include suspension, expulsion, or other appropriate sanctions as determined by the college's administration. Additionally, bystanders who engage in such conduct may face disciplinary action, up to and including suspension or expulsion from the college.

It is the responsibility of all students to report incidents of inappropriate behavior, including incidents where they witness or become aware of behavior that violates college policies or the law. Reports can be made to Campus Safety, the Dean of Students, or any other designated authority figure. Anonymous reporting options may also be available.

By following these guidelines, students can help maintain a safe and respectful campus environment that is conducive to learning and personal growth.

Possession of Firearms, Ammunition, Weapons, and Explosives

Arkansas Baptist College strictly prohibits the unauthorized possession or use of firearms (pistols, rifles, etc.), weapons (knives, clubs, nun chucks), or explosives of any kind on its premises or at any collegesponsored event. The term "dangerous weapon" refers to any instrument designed or intended for use in combat, destruction, or injury to a person or object. This includes, but is not limited to, pistols, rifles, handguns, BB guns, pellet guns, slingshots, bows and arrows, knives, homemade explosives, ammunition, fireworks, noxious materials, and incendiary devices.

Any student or group of students found in violation of this policy will face immediate separation from the College. The following actions are specifically prohibited:

- a. Possession or use of weapons, including handguns, firearms, and knives longer than 2 inches, ammunition, fireworks, explosives, noxious materials, incendiary devices, or any other dangerous substances on College premises or at a College-sponsored event.
- b. Arson, defined as intentionally setting a fire with the intent to destroy property or cause harm to individuals, on College premises or at a College-sponsored event.
- c. Attempting to ignite and/or igniting College and/or personal property and/or property of others either by intent or as a result of reckless behavior that results in damage to persons or property on College premises or at a College-sponsored event.

It is the responsibility of all members of the campus community to report any incidents of prohibited behavior to Campus Safety or the Dean of Students immediately. Any reports made will be handled with the utmost confidentiality, and students should feel comfortable speaking up without fear of retaliation.

Please Note: Possession of weapons, including handguns is prohibited, even for licensed handlers. Arkansas Baptist College reserves the right to confiscate firearms and other weapons, explosives and fireworks.

Fire Alarms, Emergencies and Fire Safety

To ensure the safety of all individuals on the college premises, Arkansas Baptist College has established the following policies related to fire alarms, emergencies, and fire safety:

- A. It is strictly prohibited to tamper with any fire alarms, fire extinguishers, fire signs, or other prevention equipment on College premises. Failure to comply with other safety rules is also prohibited.
- B. Making false emergency calls or destroying emergency signs on College premises is prohibited.
- C. Attempting to ignite or actually igniting College or personal property on fire, whether intentionally or as a result of reckless behavior, that results in damage to persons or property on College premises or at a College-sponsored event is strictly prohibited.

In the event of a fire alarm or fire drill, it is mandatory to exit and evacuate the building immediately. Failure to do so is prohibited.

Inducing panic and causing the evacuation of any public place, or otherwise causing serious public inconvenience or alarm is strictly prohibited. The following representative actions fall under this category:

- A. Initiating or circulating a false report or warning of an alleged or impending fire, explosion, crime, or other catastrophe.
- B. Threatening to commit any offense of violence.

- C. Committing any offense, with reckless disregard of the likelihood that its commission will cause serious public inconvenience or alarm.

Any individual who violates these policies will face immediate disciplinary action, which may include suspension or expulsion from the College. It is the responsibility of all members of the campus community to report any incidents of prohibited behavior to Campus Safety or the Dean of Students immediately.

Pets - Pets and other animals are prohibited in all College buildings, with the exception of those identified as service animals or those approved for guided assistance are prohibited.

Failure to Comply

Compliance with policies, procedures, and instructions from College officials is crucial to maintaining a safe and productive environment at Arkansas Baptist College. Failure to comply with such policies and directions will result in disciplinary action.

The following actions are considered failures to comply:

- A. Disregarding policies, procedures, and/or directions imposed by any College official in performance of their duties.
- B. Failing to comply with reasonable instructions from a College official.
- C. Failing to respond to written and/or verbal communication from a College official in performance of their duties.
- D. Failure to comply with the Student ID policy and identify oneself when asked by a College official.

Gambling/Waging/Bookmaking

Any form of Gambling, wagering, and/or bookmaking as defined by federal, state and/or local laws on college grounds (owned or leased) or by using College equipment and services is strictly prohibited. Students found in violation of this policy will be subject to disciplinary action by the College as well as any state and federal laws.

Complicity

Complicity, as it relates to the Student Code of Conduct, is defined as any act of aiding, procuring, encouraging, or cooperating with another person in the commission of a violation of the Code. We take complicity very seriously and hold all students accountable for their actions, as well as for their involvement in any misconduct. We expect all members of our community to act with integrity and to uphold our values of honesty, responsibility, and respect.

Examples of complicity may include but are not limited to, providing false information to College officials, encouraging or assisting another student in cheating on an exam, knowingly allowing another student to plagiarize your work, or concealing evidence of a violation of the Code.

Any student found to be complicit in a violation of the Code will face disciplinary action, which may include suspension, expulsion, or other consequences as deemed appropriate by the College.

Aiding, Abetting, or Concealing Violators of the Student Code of Conduct

Any individual or group, including student organizations, who provide assistance, support, or concealment to a community member in violation of the Code of Student Conduct will face disciplinary consequences.

Breaching Campus Safety and Security, Providing False Information, Destroying or Damaging Property

The following actions are strictly prohibited and may result in disciplinary action:

- A. Forgery or providing false information to the College, faculty, and/or staff, either verbally or in writing, or altering financial, academic, or non-academic documents without authorization.
- B. Theft, possession of stolen property, extortion, or attempted extortion of money or property from any member of the College community.
- C. Intentionally damaging College property, the property of a member of the College community, or property of those individuals contracted with the College.
- D. Unauthorized entry, use, or occupancy of College facilities, including unassigned residence hall rooms, and unauthorized access to college facilities or residential facilities, such as possessing college keys or access cards, duplicating college keys or access cards, and propping open fire doors, security doors, and/or secured doors.
- E. Obstructing pedestrian or vehicular traffic on College premises or at College-sponsored or supervised functions.
- F. Unauthorized use of checks, personal records information, credit cards, or calling cards.

Conduct Violation(s) Among Other Colleges and Universities

Arkansas Baptist College has a reciprocal agreement with the other member institutions regarding student behavior and discipline in the State of Arkansas. When an Arkansas Baptist College student is accused of misconduct on a sister institution campus, the Dean of Students will address the behaviors through the Student Social Conduct & Behavior Process. Likewise, non-Arkansas Baptist student conduct violations on the College campus will be addressed by the student's home institution.

Computer Systems Appropriate/Acceptable Use

The use of IT systems and networks is restricted to authorized purposes only. Private computers cannot be used to host non-Arkansas Baptist College organizations or sites on the IT network without explicit authorization.

The following actions are considered violations of the appropriate/acceptable use policy:

- A. Unauthorized use of computing and/or networking resources.
- B. Unauthorized access and/or copying of programs, records, or data belonging to the College and/or other users, or copyrighted software, without permission.
- C. Using computing and/or networking resources for unauthorized or non-academic purposes.
- D. Attempting or breaching the security of another user's account and/or computing system.

- E. Attempting or using College computing and/or networking resources for personal or financial gain.
- F. Attempting or actually transporting copies of College programs, records, or data to another person or computer without written permission.
- G. Attempting or actually destroying or modifying programs, records, or data belonging to the College or any other user or compromising the integrity of computer-based information.
- H. Attempting or using computing and/or networking systems in a way that wastes resources such as people, capacity, or computer.
- I. Electronic Copyright Infringement- Using intellectual property without authorization from the owner, including downloading, uploading, or sharing copyrighted material without permission.

Policy on Disruptive Behavior in the Classroom

Academic excellence demands that students maintain appropriate behavior and decorum at all times in the classroom. Arkansas Baptist College will not tolerate disruptive behavior by students. When it is found that a student has engaged in disruptive behavior, the instructor shall initiate the following procedures:

- A. The instructor will request verbally that the student(s) discontinue the disruptive behavior.
- B. Student (s) will be instructed by the instructor to exit the class immediately, if the disruptive behavior continues.
- C. Student(s) refusing or resisting instructor's request(s), will be required to leave the classroom or be escorted from classroom by Arkansas Baptist College Campus Safety staff. An incident report will be completed by the instructor and filed in the Office of the Dean of Students.

Upon receipt of the incident report, including the student's comments, the Office of the Dean of Students will investigate the matter and take appropriate action including, but not limited to, providing appropriate sanctions or referral of the incident to the Vice President of Academic Affairs.

- A. The accused student must secure written permission from the Dean of Students in order to return to class after his/her judicial hearing.
- B. The instructor will be informed of the disciplinary sanction imposed on the student and the student will be held responsible for all absences incurred between the time of suspension from class and his/her return.
- C. Repetition of misconduct will result in immediate suspension.

Misuse of College Telephone, Email, Communication Systems

The inappropriate use of Arkansas Baptist College's telephone, email and communication systems is strictly prohibited. This includes any unauthorized sharing or dissemination of information through electronic means, as well as the making of harassing phone calls.

Dress Code Violations

Arkansas Baptist College is committed to the total development of students. As such, we strive to instill in the hearts and minds of every student a foundation of appropriate conduct and attire for success. Dressing for success is essential both in and out of the classroom as an established practice to be taken seriously by your peers, professors, and future employers. Arkansas Baptist College is dedicated to educating her

students on the vicissitudes of life. Both on and off campus, it is important to remember that you represent Arkansas Baptist College, a faith-based historic institution of higher learning with high integrity and strong moral values.

Appropriate Dress Attire

The following is appropriate attire to be worn as a student at Arkansas Baptist College. On the campus and at College-sponsored events and activities, students at Arkansas Baptist College will be expected to dress neatly and appropriately at all times. The following are examples of appropriate attire for various occasions:

1. Classroom, Dining Hall (The Bistro & Buffalo Barn), and College offices - neat, modest, casual or business casual attire.
2. Formal programs in the College Auditorium, Chapel in the gymnasium, Opening Convocation, Founder's Day, Baccalaureate, Commencement, and other college functions - **business or business casual attire.**
3. Interviews - business attire.
4. Social/recreational activities, residence hall lounges (during visitation hours) - **modest, casual or business casual attire.**
5. Balls, Galas, - formal and semi-formal attire. Students who choose not to abide by this policy **will be denied** admission into class and various functions and services of the

College if their manner of attire is inappropriate. If students have questions regarding attire for different functions or desire further clarification on what is considered neat, modest, casual, business, semi-formal or formal attire, please consult staff in the Office of the Dean of Students.

Inappropriate Dress Attire

Examples of inappropriate attire and/or appearance include but are not limited to:

1. Head wraps, rollers, hair picks, caps, do-rags and/or hoods in classrooms, the cafeteria, or other public settings. Do-rags should not be worn outside of the residence halls. This policy item does not apply to headgear considered as a part of religious or cultural dress.
2. Sunglasses or "shades" are not to be worn in class or at formal programs, unless medical documentation is provided to support use.
3. Jeans at major programs such as, Opening Convocation, Baccalaureate, Commencement, and Founder's Day, Homecoming or other programs dictating professional, business casual attire, semi-formal or formal attire.
4. Clothing with derogatory, offensive and/or lewd messages either in words or pictures.
5. Top and bottom coverings should be worn at all times.
6. No sagging – the wearing of one's pants or shorts low enough to reveal undergarments or secondary layers of clothing.
7. Pajamas shall not be worn while in public or in common areas of the College.
8. Midriffs, halters, tube tops or cutoff/shredded tee shirts or pants or short-shorts
9. Pants below the waist
10. Leggings without the appropriate coverage
11. Bare feet in public venues.

12. Dresses and/or skirts two or more inches above the knees-- Thigh length dresses or suits are inappropriate.
13. See-through materials are not acceptable.

Additional dress regulations may be imposed upon students participating in certain extracurricular activities that are considered Arkansas Baptist College auxiliaries (e.g., athletic teams, the band, choir, dance ensemble, fraternities and sororities, etc.). The College reserves the right to modify this policy as deemed appropriate.

Consequences for Violating the General Dress Attire Guidelines

Each student at Arkansas Baptist College is expected to honor the Dress Decorum guidelines both on and off campus. The Administration, faculty, and staff at Arkansas Baptist College reserve the right to respectfully discuss with students the inappropriateness of their attire as it relates to classroom expectations. Students are expected to adhere to all policies regarding academic and co- curricular programs, activities, and events.

All administrative, faculty, students and support staff members are asked to assist in enforcing this policy and may report disregard or violations to the Division of Student Affairs. Failure to comply with this policy is a violation of the Code of Student Conduct and students may be given a verbal warning to correct their attire by a faculty or staff member. Should the student choose not to abide by the directives of a faculty or staff member, this is a violation of our Code of Student Conduct for “failure to comply,” and this matter will be referred to the Office of Student Affairs for disciplinary action.

If for religious, medical or cultural reasons, a student is unable to comply with this policy, the student must:

- make a written request to the Vice President for Student Affairs;
- provide required documentation;
- secure written approval from the Vice President for Student Affairs.

Demonstrations and Mass Gatherings

To ensure a safe and orderly campus environment, students and groups who plan to hold a demonstration or mass gathering must contact the Division of Student Affairs to arrange a suitable time and location. The College requires a minimum of forty-eight (48) hours' advance notice to allow for review of all relevant documentation and to designate appropriate areas for the event. This also allows the College to provide adequate security or police protection for both the demonstrators and the College community members and property.

Freedom of Expression Policy and Campus Protest

Arkansas Baptist College is committed to academic environment in which diverse political, religious, and social views can be expressed and debated in a responsible manner. The purpose of Arkansas Baptist College's Freedom of Expression Policy is to provide for organized expressive activities to be conducted on the grounds of the College in a manner consistent with these principles. The College expects that persons engaging in expressive activities will comply with College policies and applicable local, state, and federal laws.

Arkansas Baptist College reserves the right to impose reasonable time, place, and manner restrictions on expressive activities. Moreover, any activities that are illegal or disruptive to the regular operations of the College, such as physical force or obstruction of classes and College business activities, will not be tolerated. Individuals or groups who engage in disruptive behavior or fail to comply with College policies and relevant local, state, and federal laws may be immediately removed from campus and subjected to appropriate actions by College officials and Campus Safety.

Posting and Publicity

The posting of flyers or other promotional materials that do not comply with the College's approved publicity and posting policies is strictly prohibited, regardless of their location on campus. Such materials must be approved by the Dean of Students and the Office of Student Activities. It is also mandatory to remove all flyers and promotional materials after their expiration date.

Littering

Arkansas Baptist College prohibits littering on any of its properties. Students are expected to take responsibility for their living environment and maintain all common areas on campus clean and free of trash and litter at all times. Violation of this policy will result in disciplinary action.

Sales and Solicitation

Sales and solicitation activities are restricted on Arkansas Baptist College campus. Solicitation refers to activities like requesting money, selling merchandise, taking subscriptions or offering comparable privileges. Any such activities should be approved by the Office of Student Activities, appropriate Building Coordinator and/or Residential Life and Housing staff before being conducted in person, by handbills, through email or the internet, or by using posters or similar materials. Selling or soliciting for private or commercial gain is strictly prohibited. Additionally, door-to-door solicitation in academic and non-academic buildings, including residential facilities, is also prohibited.

The College deems the following acts unacceptable and violations of the Student Code of Conduct. Acting under the influence of drugs and/or alcohol does not diminish or excuse a violation of the Disciplinary Code. This list may not be all inclusive of inappropriate behavior or misconduct. Any student found to have committed or to have attempted to commit the following misconduct is subject to the disciplinary sanctions outlined in the sanction section of the handbook.

Bullying, Intimidation, and Harassment (BIH) – refers to the following actions:

- a. Sending any communication, including electronic or social media, to another person in a manner that is likely to cause alarm;
- b. Physically harming or threatening to harm another person by striking, kicking, shoving, or offensive touching;
- c. Threatening to disclose personal information or media about a person through electronic or other forms of communication; or
- d. Engaging in a course of conduct that is alarming or repeatedly committing acts with the intention of seriously alarming another person.

For the behavior to be considered BIH, it should be severe, persistent, or pervasive enough to significantly disrupt or interfere with the orderly functioning of the institution or the rights of a student to participate in or benefit from the educational program.

Burglary - Unlawful and/or forcible entry by a person or any physical object connected with the person's body into a building, office, room, vehicle, or coin-operated machine on the college campus with the intent to commit theft.

Campus Disturbance - Willfully engaging in acts which obstruct, disrupt, or interfere with normal College functions or College-sponsored activities and services including, but not limited to studying, teaching, research, or fire, police and emergency services.

Defacing College Property - Unauthorized attachment of signs, posters, and other items of publicity to doors, walls, windows, etc., except on bulletin boards as prescribed by the College's administration.

Disorderly Conduct – Obstructing or interfering with teaching, research, administration, disciplinary proceedings or other College functions or activities, including the College's public service functions on or off campus. Disturbing the peace and good order of the College by, among other things fighting, quarreling, and disruptive behavior or excessive noise, including but not limited to, a disruption by use of all types of cameras, electronic tablets, cell phones, and/or other communication devices.

Failure to Answer a Summons - Following proper notification, failing to appear before the Vice President for Student Affairs/Dean of Students, a hearing body, or an administrative officer of the College.

Fraud - Intentionally attempting by illegal schemes and techniques to avoid the payment of tuition or fees legally due the College and the State of Arkansas or to obtain surreptitiously or under false pretext money, goods, favors or services from persons at the College or in the name of the College.

Forgery - Illegally altering or misusing official documents or instruments of identification used by the College.

Host Responsibility – Students and student organizations are responsible for their guests or visitors' behavior and compliance with college policies and procedures in academic and non-academic buildings, on college owned property, and at college sponsored events. Any student's failure to fulfill her responsibilities will be subject to fines/charges for any damage and possible disciplinary action. Nonmembers of the Arkansas Baptist College community whose behavior is detrimental to the college may lose his/her visiting privileges and/or be subject to charges of trespassing on Arkansas Baptist College property.

Interference with Emergency Evacuation Procedures – Any student, student organization, or group of students found to be intentionally interfering with the emergency evacuation procedures for any building, structure, or facility on the Arkansas Baptist College premises, or failing to follow prescribed emergency procedures or any willful disregard of the emergency alarm signals that endanger the lives of the community members will be subject to severe disciplinary actions which may include immediate separation from the College.

Insubordination - Deliberately disregarding or disobeying a lawful directive from a College official acting in an official capacity.

Possession of Stolen Property - Knowingly possessing stolen property on campus or at College sponsored activities or events.

Mental or Bodily Harm

- a. Intentionally inflicting mental or bodily harm upon any person;
- b. taking any action for the purpose of inflicting mental or bodily harm upon any person;
- c. taking any reckless, but not accidental action from which mental or bodily harm could result to any person;
- d. engaging in conduct (including, but not limited to stalking) that causes a person to believe that the offender may cause mental or bodily harm;
- e. "Any person" as used in this section may include oneself.

Misuse of ABC I.D. Card

Illegal use, transfer, alteration, or forgery of an ABC I.D. Card.

Misuse of Safety Equipment

Unauthorized use or tampering with fire safety systems or other emergency equipment.

Photographing or Videotaping

Photographing, videotaping, filming, digitally recording, or by any other means, secretly viewing with or without a device, another person without that person's consent in any location where the person has a reasonable expectation of privacy, or in a manner that violates a reasonable expectation of privacy. This section does not apply to lawful security surveillance filming or recording that is authorized by law enforcement or authorized College officials.

Stalking

Stalking refers to a pattern of behavior targeted towards a particular individual that would cause a reasonable person to fear for their safety or the safety of those close to them. Stalking behavior includes, but is not limited to, non-consensual communication or physical contact, following or pursuing the individual, showing up at places frequented by the individual, spying, trespassing, vandalism, gathering information from others about the individual, and using threats of harm to oneself or others close to the victim to manipulate and control their behavior.

Unauthorized Entry/Trespassing - Unauthorized entry to any College facility or property.

Unauthorized Use of the College's Name – Unauthorized use of the name of Arkansas Baptist College and/or its service marks. Use of College's name/service marks for solicitation purposes must receive prior written approval from the College's Office of Financial Affairs and the Office of Institutional Advancement.

Undisclosed recording – Making, attempting to make, or transmitting an audio or video recording of private, non-public conversations and/or meetings on College premises without the knowledge and

consent of all participants subject to such recordings. This provision does not extend to the recording of public events or discussions, or to recordings made for law enforcement purposes.

Violation of College Policies and Procedures – Violation of other College policies and procedures. Students may be held accountable for their behavior through both the criminal justice system and the College's conduct code process. College conduct proceedings may be carried out prior to, simultaneously with, or following civil or criminal proceedings at the discretion of the Office of the Vice President for Student Affairs or the Dean of Students.

Harassment

Consistent with its Statement on Non-Discrimination and its Mission Statement and values, the College is committed to providing a positive learning and working environment and therefore will not tolerate harassment and discrimination which violates College policy and/or state/federal law. The College has established specific policy statements and complaint resolution procedures for harassment and discrimination, as described below. Any community member who feels he or she has experienced harassment, discrimination or retaliation should contact the Division of Student Affairs.

Arkansas Baptist College seeks to assure that all community members are able to learn and work in an atmosphere free from harassment. Harassing conduct is contrary to the positive educational environment the College wishes to foster and maintain. Because harassment undermines the College's mission and threatens the wellbeing of its community members, it is a serious policy violation and will not be tolerated.

The College prohibits harassment on the basis of race, sex, gender, religion, national origin, ethnicity, age, sexual orientation, disability, or any other harassment prohibited by federal or state law. This policy applies to all College community members, including faculty, staff, students, and administration. Vendors, independent contractors, visitors and others who conduct business with the College are also expected to comply with this policy. The College will take appropriate action when this policy is violated by community members and guests.

This Harassment Policy defines and prohibits harassment based on federal and state law as interpreted by the courts. If statutory provisions or court interpretations change or conflict with this policy, the College's policy will be deemed amended to assure continued compliance. This harassment policy is also intended to comply with statutes and guidelines of other regulatory agencies, such as the U.S. Office of Civil Rights guidelines for student-to-student harassment.

Harassment can take many forms and can include racial slurs, rude comments, outlandish rumors, racial or sexual jokes, innuendoes, unwelcome compliments, unwelcome touching, inappropriate cartoons, pranks, and other verbal or physical conduct. Harassment or any physical, verbal, graphic, written, or electronic communications that are sufficiently severe, pervasive or persistent so as to threaten an individual or limit the ability of an individual to function in the college community. Using online communities and electronic communications such as email, websites, Face book, Twitter, Tumbler, and texting for the purpose of harassing, threatening, or engaging in behaviors that ridicule, belittle or harm individuals or groups, regardless of your intent also consist of a policy violation and will not be tolerated by the College. Generally, physical and verbal conduct is considered harassment when it meets one or more of the following criteria:

1. Submission to the undesirable conduct or communication is made, either explicitly or implicitly, a term or condition of one's employment or academic status, OR
2. Submission to or rejection of the conduct or communication by an individual is used as a factor in decisions affecting the individual's employment or education, OR
3. The conduct or communication has the purpose or effect of substantially or unreasonably interfering with an individual's employment or education, or creates an intimidating, hostile, or offensive employment or academic environment, OR the conduct or communication would not have occurred but for the protected category of the individual(s) or group(s) to whom it is directed and who are affected by it.

Racial Harassment Statement

Racial Harassment and Harassment Based on National Origin, Ethnicity, or Color is objectionable verbal and/or physical conduct toward others. Arkansas Baptist College seeks to provide equal educational opportunities for all students and to cultivate the ethical and moral values of a just society. To do so, the College must maintain an environment free from racial harassment, intimidation, and humiliation as expressed by communication, threats, acts of violence, hatred, abuse of authority, or ill will that assault an individual's self-worth. Racial harassment interferes with or limits an individual's or groups' ability to participate in or benefit from College programs, services, activities, or amenities. Racial harassment dishonors the College and its members and diminishes the stature of the academic community. Arkansas Baptist College unequivocally condemns racist behavior in any form.

Sexual Harassment Statement

Sexual harassment, whether verbal, physical, written, or visual, is unacceptable behavior and will not be tolerated. Sexual harassment is a violation of state and federal law and has a negative impact on the functioning of the College. Consequently, all members of the college community must be sensitive to the possibility of sexual harassment whether intended or inadvertent. Individuals must recognize this potential and act to prevent it. When sexual harassment has occurred, the college shall take effective and expeditious action. Any member of the college community who believes he or she has been the victim of sexual harassment may bring the matter to the attention of the Division of Student Affairs.

Sexual harassment refers to objectionable verbal and/or physical conduct that is sexual in nature or based on gender. It is defined as any unwelcome sexual advances, requests for sexual favors, or other verbal or physical conduct of a sexual nature that is made either explicitly or implicitly as a condition of an individual's employment, academic advancement, or participation in college services, activities, or privileges. Although sexual harassment commonly occurs in situations where there is a power differential between the parties involved, the College acknowledges that it can happen between individuals of the same or lower college status. This includes instances where students create a hostile environment for faculty members.

Harassment Based on Other Protected Categories

Harassment based on other protected categories is treated the same as sexual and racial harassment in this policy. The U.S. judicial courts have also traditionally applied the standards established for sexual and racial harassment to other types of harassment.

Sexual Assault Policy

Arkansas Baptist College is committed to combating sexual assault both on campus and in the community at large. Our efforts in this area are focused on sexual assault awareness and prevention and are directed at every member of the College community. Programmatic efforts include seminars and workshops, providing group and individual counseling services, and distributing materials that educate the community about rape and other forms of sexual assault and harassment. The Division of Student Affairs is charged with providing information regarding ongoing programmatic efforts and resources for students. The resources can be obtained by contacting the Division of Student Affairs at or by visiting the Student Affairs web page for additional resources. In the event a member of this College community is the victim of a sexual assault on or off- campus, it is the policy of the College to:

- Encourage prompt reporting to both campus authorities and local police.
- Refer victims/survivors for appropriate medical treatment.
- Provide initial post incident counseling services and make referrals to community-based victim/survivor assistance programs.

In the event of an alleged on-campus sexual assault, either forcible or non-forcible, all members of the College community are directed to notify the Office of Campus Safety immediately and file an official report. In all cases where criminal acts are alleged, the Arkansas Police Sex Crimes will be notified. Victims/survivors should preserve all physical evidence in cases where a criminal assault has occurred. In such cases, Campus Safety should be consulted before removing clothing, washing or showering, or altering the scene of the crime in any manner. Campus Safety will also assist any victim in making a report to the local police agency with jurisdiction, if the victim chooses to make a report of a sexual assault that occurred off campus. In these instances, the local police agency with jurisdiction shall assume responsibility for the criminal investigation.

In the event of an allegation of sexual misconduct or criminal behavior by a member of the College community, a thorough administrative inquiry shall be conducted. This process will comply with all College policies that pertain to complaints and disciplinary actions as they apply to faculty, staff, and students as outlined in the respective College handbooks applicable to each group. In all cases, both the accuser and accused shall have the same opportunities to have others present during disciplinary proceedings. Both must be informed of the outcome of any institutional disciplinary proceeding brought regarding an alleged sexual offense.

Sexual Misconduct Policy

Arkansas Baptist College is committed to promoting an environment, which preserves the safety and dignity of its students. When dealing with students who have engaged in sexual activity and where one or more individuals have been victimized, the College reserves the right to intervene disciplinarily in keeping with our expectations of students.

Sexual misconduct is a violation of the College's Student Code of Conduct, and Harassment Policy. The following section provides a policy statement, additional helpful information, and an explanation of how the College will respond to complaints of sexual misconduct such as rape, sexual assault, and sexual exploitation.

Sexual Misconduct of any Kind is Prohibited and Unacceptable

Arkansas Baptist College views, with the utmost seriousness, any form of non-consensual sexual activity and sexual misconduct. Sexual Misconduct is defined as “engaging in, or attempting to engage in, any one or more sexually offensive acts with or directed at another person without obtaining his or her consent.” Rape, sexual assault and most forms of sexual exploitation described below are violations of the state of Arkansas’s Criminal Code. Arkansas Baptist College undertakes inquiries and disciplinary hearings and renders disciplinary sanctions regarding sexual misconduct in a non-criminal context. Although the definitions and procedures used may be similar to criminal law or the criminal court system, they are specific to Arkansas Baptist College and limited to the meaning and use given them by the College. An act which might not be criminally prosecuted may still violate College policy. **Reporting Sexual Misconduct**

The College encourages students to make use of appropriate resources and will assist all persons involved in an allegation of sexual misconduct. When a person is subjected to sexual misconduct, he/she has reporting options:

- File an incident report anonymously with Arkansas Baptist College Campus Safety. This provides a way for a reporting party to seek personal assistance and information without entering the campus judicial system. The College will not initiate proceedings under its student disciplinary process unless there are compelling reasons or potential danger to other community members.
- File an incident report directly in which a College staff member will complete a preliminary inquiry.
- File a complaint of sexual harassment with the Director of Human Resources and/or the Title IX Officer in the Equal Opportunity Office located in the Administration building.
- File a criminal report with the Little Rock and/or North Little Rock Police Department.

Sexual Misconduct Disciplinary Hearing Process

A College inquiry may be undertaken when a reporting party alleges sexual misconduct by a student. Subsequently the College, in its discretion, and depending upon the results of the inquiry, may conduct a disciplinary hearing. Generally, the College will only initiate an inquiry or disciplinary hearing with the consent of the reporting party; however, the College reserves the right to pursue a hearing and disciplinary action without the consent of the reporting party in certain situations.

During the disciplinary hearing process, either an Arkansas Baptist College Hearing Officer(s) and/or the College Judicial Conduct Board formally review the incident for students as determined by the Vice President for Student Affairs. The process involves the hearing officers speaking with the reporting party, accused and witnesses and considering other relevant information. Since a hearing is disciplinary in nature, pertinent information is heard, a determination of responsibility for a rule violation is made, and sanctions are applied if appropriate. The College uses a standard of “more likely than not” in making a finding of responsibility for a violation which is different from criminal law.

For a finding of responsibility for sexual misconduct, a minimum of two conditions must be established to meet the College’s standard:

1. It was “more likely than not” that the reporting party was not able to or did not give consent according to the definitions above and;
2. It was more likely than not that the accused engaged in sexual misconduct, as described above, with knowledge or with what most people would reasonably consider knowledge that the reporting party was not able or willing to give consent freely and actively.

The right to an appeal as described here is limited to the student found responsible for the violation. However, in compelling circumstances, the Vice President for Student Affairs will consider an appeal request from those impacted by the responsible student's misconduct.

In lieu of a hearing, a facilitated discussion may take place. A facilitated discussion is a voluntary process in which the reporting party and the accused communicate with the help of a neutral third party trained in the dynamics of sexual misconduct. A facilitated discussion utilized by the reporting party has the potential to achieve certain desired outcomes. A facilitated discussion does not dictate an outcome in the same way as a hearing.

Although Arkansas Baptist College acknowledges the extreme emotions and stress involved in an occurrence of sexual misconduct, it does not condone any person on either side of the incident engaging in any type of retaliation. This includes slander, libel, vigilante justice, or harassment. Violations of this type will be handled in accordance with the Community Standards and Code of Student Conduct. Persons making verbal or written statements may be subject to civil liability.

Arkansas Baptist College State Authorization Reciprocity Agreements (SARA) Student Complaint Process

College students are entitled to an accessible procedure for expressing dissatisfaction and communication with the administration to reconcile any college-related problems. Arkansas Baptist College has procedures for addressing written student complaints and is proactive with respect to student concerns.

Students are encouraged to resolve college-related problems through the informal and formal grievance process. See the general steps below for resolving an issue. Please consult the Arkansas Baptist College Student Handbook or the ABC Academic Catalog for more details on filing formal academic and nonacademic grievances.

In addition to the formal grievance procedures, any written complaint will be accepted and acted upon as long as it contains the student's name, contact information, a general description of the grievance and expected outcome. The resolution of grievances can be conducted with students in person, through phone or online via ABC email.

Please note that submitting a written complaint does not bypass the formal grievance processes for academic and non-academic issues.

If the grievance is not resolved after exhausting ABC's grievance procedure, students may file a complaint with the Arkansas Department of Higher Education (ADHE). Students who wish to file a complaint should review the contact information listed below. These agencies usually require the student to exhaust the institution's internal complaint processes prior to filing a complaint or grievance.

Arkansas Department of Higher Education (ADHE)

An out-of-state student may report an unresolved grievance (except for those related to grades or student conduct) by contacting ADHE. The student grievance web form may be accessed at: <https://www.adhe.edu/students-parents/colleges-universities/student-grievance-form/> ADHE is Arkansas' state portal agency for the National Council for State Authorization Reciprocity Agreements (NC-SARA)

and is responsible for the final resolution of student complaints against Arkansas institutions. If a complaint is received from an ABC student located outside of Arkansas, in accordance with the SARA complaint resolution process, ADHE will notify the SARA portal entity of the state in which the complaining student is located. For a list of NC-SARA portal entity contacts, visit <https://www.ncsara.org/content/state-portal-entitycontacts>.

Additional College Policies

Travel Policy

All travel by a Registered Student Organization must be approved by the Dean of Students or the Vice President for Student Affairs. Individual students or student groups traveling off-campus and/or out of state are required to obtain and complete the Student Travel Packet with the Division of Student Affairs. All student travel must provide the appropriate contact information to the Division of Student Affairs at least 15 days prior to the travel date.

Copyright Infringement Policy

Copyright is the right of an author, artist, composer or other creator of a work of authorship to control the use of his or her work by others. Protection extends to literary works, musical works, dramatic works, pantomimes and choreographic works, pictorial and graphic works, sculpture, motion pictures and other audiovisual works, sound recordings and architectural works. Generally speaking, a copyrighted work may not be reproduced by others without the copyright owner's permission. The public display or performance of copyrighted works is similarly restricted.

There are exceptions to these rules- notably the "fair use" doctrine, - but generally the unauthorized reproduction, performance or distribution of a copyrighted work is copyright infringement and may subject the infringer to civil and criminal penalties.

Arkansas Baptist College, its faculty, students and employees must comply with the Copyright Law. Questions regarding copyright law compliance should be directed to the department head, the professor, the supervisor, the Librarian of the College or the Office of the General Counsel.

Additional information about copyright is available on the following web site:

<http://www.copyright.gov/circs/circ01.pdf>

Fair Use Policy

"Fair use" is a copyright law doctrine that permits the reproduction or other use of a copyrighted work, without the copyright owner's permission, for purposes such as criticism, commentary, news reporting, teaching and research. The Copyright Act, however, does not specify which uses are fair, but rather establishes a four-factor balancing test for courts to employ on a case-by- case basis. Despite the broad reach of the Copyright Act, there are certain circumstances under which it is permissible to reproduce or display copyrighted works without the permission of the copyright owner. These circumstances are known as "fair use" standards. The fair use standards, embodied in section 107 of the Copyright Act, are:

The purpose and the character of the use, including whether it is for commercial or nonprofit educational purposes:

- The nature or type of the copyrighted material (i.e., periodical, film, book, etc.)
- The amount and substantiality of the portion used in relation to the whole
- The effect of the use on the potential market for or value of the copyrighted material.

Institutional Policy On HIV/AIDS

Arkansas Baptist College adheres to the guidelines and regulations set forth by the Americans with Disabilities Act (ADA) on its treatment of HIV/AIDS and persons with other serious health problems. The College, through the appropriate agencies on campus, will provide educational materials to students and to administrators, faculty and staff members to better equip them to deal with the presence of HIV/AIDS and other serious health problems. Such information will be reviewed periodically to ensure that it is consistent with the latest research findings. To ensure that in any situation where some risk of HIV/AIDS exposure might occur, precautions will be taken to protect the persons involved in such situations. Persons living with HIV/AIDS shall have all the rights afforded by the Human Rights Code with respect to education and employment. Information regarding HIV/AIDS received from any source will be treated completely confidential. Testing for HIV/AIDS is voluntary, unless required by medical or public health officials.

Institutional Policy on Safety

Arkansas Baptist College is committed to providing a safe and healthy environment for all members of the college community. It is, therefore, the objective of the college to:

1. Maintain, as a minimum standard, compliance with all relevant statutes, regulations and standards of regulatory authorities representing occupational health and safety.
2. Ensure that safety and accident prevention are an integral part of planning, operations and college activities.
3. Promote safe working practices and awareness through training, education and the implementation of safety programs.

Emergency Powers

The college reserves the right to take necessary and appropriate actions to protect the safety and well being of the campus community, including the right in cases of actual or perceived threats of danger, to act to temporarily bar students from the campus without prior notice.

